U.S. Department of Justice
Federal Bureau of Prisons
Administration Division

Field Acquisition Office
Grand Prairie, Texas 75051

RE: GSA eBuy Request for Quote: 15BGCS26Q61900001
Ancillary Medical Services
FCI Herlong

Dear Quoter:

Attached is a solicitation package prepared by the Federal Bureau of Prisons, Field Acquisition Office, for the provision of Ancillary Medical Services (Paramedic, Phlebotomy, Radiology Technician, Licensed Vocational Nurse (LVN) and two each Dental Assistants) at the Federal Correctional Institution (FCI) Herlong, located in Herlong, California. This package contains all necessary information to submit a quote.

When submitting your quote, you shall consider all information provided herein. Please carefully follow all instructions located in the solicitation package concerning content, format, and submission of quotes. Failure to provide all the requirements in the Quote submission Instructions may result in your quote being eliminated from consideration for award.

Contractors must comply with FAR 52.222-54, E-Verify requirements, by enrolling in E-Verify within 30 days of contract award and beginning verification within 90 days of enrollment.

Quotes shall be received on or before the deadline specified in Block 8 of the Standard Form (SF) 1449, page 1 of this solicitation. Quotes shall be submitted in pdf format through the GSA eBuy system ONLY. ***Emailed quotes will not be accepted.***

Please submit any questions you may have concerning this solicitation in writing via email to bwendorff@bop.gov.

Sincerely,

Brian C. Wendorff

Brian Wendorff
Contracting Officer

SOLICITATION/CONTRACT/ORDER FOR COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES

NOTE: OFFEROR TO COMPLETE BLOCKS 12, 17, 23, 24 AND 30.

1. REQUISITION NUMBER	PAGE 1 OF
	60

2. CONTRACT NUMBER	3. AWARD/EFFECTIVE DATE	4. ORDER NUMBER	5. SOLICITATION NUMBER	6. SOLICITATION ISSUE DATE
			15BGCS26Q61900001	08/18/2026

7. FOR SOLICITATION INFORMATION CALL:	a. NAME	b. TELEPHONE NUMBER (*No collect calls*)	8. OFFER DUE DATE / LOCAL TIME
	Brian Wendorff bwendorff@bop.gov	320-245-6205	09/23/2026 12:00 CT

9. ISSUED BY — CODE: BFAO
Federal Bureau of Prisons
Field Acquisition Office
U.S. Armed Forces Reserve Complex
346 Marine Forces Drive
Grand Prairie, TX 75051

10. THE ACQUISITION IS
- [ ] SMALL BUSINESS
- [ ] HUBZONE SMALL BUSINESS
- [ ] SERVICE-DISABLED VETERAN-OWNED SMALL BUSINESS (SDVOSB)
- [ ] UNRESTRICTED OR
- [X] SET ASIDE: 100.00 % FOR
  - [X] WOMEN-OWNED SMALL BUSINESS (WOSB)
  - [ ] ECONOMICALLY DISADVANTAGED WOMEN-OWNED SMALL BUSINESS (EDWOSB)
  - [ ] 8(A)

NORTH AMERICAN INDUSTRY CLASSIFICATION STANDARD (NAICS): 561320
SIZE STANDARD: 34 Million

11. DELIVERY FOR FREE ON BOARD (FOB) DESTINATION UNLESS BLOCK IS MARKED	12. DISCOUNT TERMS	13a. THIS CONTRACT IS A RATED ORDER UNDER THE DEFENSE PRIORITIES AND ALLOCATIONS SYSTEM - DPAS (15 CFR 700)	13b. RATING
[ ] SEE SCHEDULE		[ ]	14. METHOD OF SOLICITATION: [X] REQUEST FOR QUOTE (RFQ) [ ] INVITATION FOR BID (IFB) [ ] REQUEST FOR PROPOSAL (RFP)

15. DELIVER TO — CODE: 15B619
Federal Bureau of Prisons
FCI Herlong
741-925 Herlong Access Rd A25
Herlong, CA 96113

16. ADMINISTERED BY — CODE: 15B619
Federal Bureau of Prisons
FCI Herlong
741-925 Herlong Access Rd A25
Herlong, CA 96113

17a. CONTRACTOR/ OFFEROR — CODE: ____ FACILITY CODE: ____
TELEPHONE NUMBER

18a. PAYMENT WILL BE MADE BY — CODE: BHER
Federal Bureau of Prisons
FCI Herlong
PO BOX 900
Herlong, CA 96113

[ ] 17b. CHECK IF REMITTANCE IS DIFFERENT AND PUT SUCH ADDRESS IN OFFER

18b. SUBMIT INVOICES TO ADDRESS SHOWN IN BLOCK 18a UNLESS BLOCK BELOW IS CHECKED [ ] SEE ADDENDUM

19. ITEM NUMBER	20. SCHEDULE OF SUPPLIES/SERVICES	21. QUANTITY	22. UNIT	23. UNIT PRICE	24. AMOUNT
	Provision for Ancillary Medical Services IAW the SOW for FCI Herlong. Unique Entity ID: _____ CAGE: _____ Email: _____ Firm Fixed Price See Continuation Sheet(s) (*Use Reverse and/or Attach Additional Sheets as Necessary*)				

25. ACCOUNTING AND APPROPRIATION DATA

26. TOTAL AWARD AMOUNT (*For Government Use Only*)

[X] 27a. SOLICITATION INCORPORATES BY REFERENCE (FEDERAL ACQUISITION REGULATION) FAR 52.212-1, 52.212-4. ARE [X] ARE [ ] ARE NOT ATTACHED. ADDENDA

[ ] 27b. CONTRACT/PURCHASE ORDER INCORPORATES BY REFERENCE FAR 52.212-4. FAR 52.212-5 IS ATTACHED. ADDENDA [ ] ARE [ ] ARE NOT ATTACHED

[ ] 28. CONTRACTOR IS REQUIRED TO SIGN THIS DOCUMENT AND RETURN ____ COPIES TO ISSUING OFFICE. CONTRACTOR AGREES TO FURNISH AND DELIVER ALL ITEMS SET FORTH OR OTHERWISE IDENTIFIED ABOVE AND ON ANY ADDITIONAL SHEETS SUBJECT TO THE TERMS AND CONDITIONS SPECIFIED.

[ ] 29. AWARD OF CONTRACT: REFERENCE _____ OFFER DATED _____ . YOUR OFFER ON SOLICITATION (BLOCK 5) INCLUDING ANY ADDITIONS OR CHANGES WHICH ARE SET FORTH HEREIN, IS ACCEPTED AS TO ITEMS:

30a. SIGNATURE OF OFFEROR/CONTRACTOR	31a. UNITED STATES OF AMERICA (*SIGNATURE OF CONTRACTING OFFICER*)

30b. NAME AND TITLE OF SIGNER (*Type or print*)	30c. DATE SIGNED	31b. NAME OF THE CONTRACTING OFFICER (*Type or print*)	31c. DATE SIGNED
		Brian Wendorff	

19. ITEM NUMBER	20. SCHEDULE OF SUPPLIES/SERVICES	21. QUANTITY	22. UNIT	23. UNIT PRICE	24. AMOUNT

32a. QUANTITY IN COLUMN 21 HAS BEEN

☐ RECEIVED ☐ INSPECTED ☐ ACCEPTED, AND CONFORMS TO THE CONTRACT, EXCEPT AS NOTED: _____

32b. SIGNATURE OF AUTHORIZED GOVERNMENT REPRESENTATIVE	32c. DATE	32d. PRINTED NAME AND TITLE OF AUTHORIZED GOVERNMENT REPRESENTATIVE
32e. MAILING ADDRESS OF AUTHORIZED GOVERNMENT REPRESENTATIVE		32f. TELEPHONE NUMBER OF AUTHORIZED GOVERNMENT REPRESENTATIVE 32g. E-MAIL OF AUTHORIZED GOVERNMENT REPRESENTATIVE

33. SHIP NUMBER ☐ PARTIAL ☐ FINAL	34. VOUCHER NUMBER	35. AMOUNT VERIFIED CORRECT FOR	36. PAYMENT ☐ COMPLETE ☐ PARTIAL ☐ FINAL	37. CHECK NUMBER
38. S/R ACCOUNT NUMBER	39. S/R VOUCHER NUMBER	40. PAID BY		

41a. I CERTIFY THIS ACCOUNT IS CORRECT AND PROPER FOR PAYMENT		42a. RECEIVED BY *(Print)*	
41b. SIGNATURE AND TITLE OF CERTIFYING OFFICER	41c. DATE	42b. RECEIVED AT *(Location)*	
		42c. DATE REC'D *(YY/MM/DD)*	42d. TOTAL CONTAINERS

Table of Contents

Section	Description	Page Number
A	Solicitation/Contract Form	1
B	Supplies or Services and Prices/Costs	5
C	Description/Specifications/Statement of Work	10
D	Packaging and Marking	26
E	Inspection and Acceptance	27
F	Deliveries and Performance	28
G	Contract Administration Data	29
	2852.201-70 Contracting Officer's Representative (COR) (NOV 2020)	29
	Tailoring: Contract Administration Data	29
H	Special Contract Requirements	34
	2852.222-70 Domestic Violence, Sexual Assault, and Stalking (DEC 2014)	34
	2852.223-70 Unsafe Conditions Due to the Presence of Hazardous Material (NOV 2020)	34
	DOJ-05 Security of Department Information and Systems (APR 2026)	34
	DOJ-07 Prohibition On Access By Non-U.S. Citizens To DOJ IT Systems (MAR 2002)	41
I	Contract Clauses	42
	52.203-17 Contractor Employee Whistleblower Rights (Nov 2023)	42
	52.204-13 (DEV) System for Award Management-Maintenance (Oct 2018) (DEVIATION NOV 2025)	42
	52.209-10 (DEV) Prohibition on Contracting With Inverted Domestic Corporations (Nov 2015) (DEVIATION NOV 2025)	42
	52.212-4 (DEV) Terms and Conditions-Commercial Products and Commercial Services (Nov 2023) (DEVIATION NOV 2025)	42
	52.222-41 (DEV) Service Contract Labor Standards (Aug 2018) (DEVIATION DEC 2025)	42
	52.222-43 (DEV) Fair Labor Standards Act and Service Contract Labor Standards-Price Adjustment (Multiple Year and Option Contracts) (Aug 2018) (DEVIATION DEC 2025)	42
	52.222-90 Addressing DEI Discrimination by Federal Contractors (APR 2026)	42
	52.224-3 Privacy Training (Jan 2017)	42
	52.232-40 Providing Accelerated Payments to Small Business Subcontractors (Mar 2023)	42
	52.233-3 (DEV) Protest after Award (Aug 1996) (DEVIATION NOV 2025)	42
	52.233-4 (DEV) Applicable Law for Breach of Contract Claim (Oct 2004) (DEVIATION NOV 2025)	42
	52.240-91 (DEV) Security Prohibitions and Exclusions (DEVIATION NOV 2025)	42
	2852.212-4 Contract Terms and Conditions, Commercial Items (FAR Deviation) (NOV 2020)	42
	BOP 2852.242-71 EVALUATION OF CONTRACTOR PERFORMANCE UTILIZING CPARS (APR 2011)	43
	DOJ-01 Whistleblower Information Distribution (Oct 2021)	43
	DOJ-02 Contractor Privacy Requirements (JAN 2022)	43
	DOJ-03 Personnel Security Requirements For Contractor Employees (Nov 2021)	48
	DOJ-08 Continuing Contract Performance During a Pandemic Influenza or other National Emergency (OCT 2007)	53
J	List of Attachments	55
K	Representations, Certifications and Other Statements of Offerors	56
L	Instructions, Conditions and Notices to Offerors	57
	52.204-7 (DEV) System for Award Management-Registration (Nov 2024) (DEVIATION NOV 2025)	57
	52.212-1 (DEV) Instructions to Offerors-Commercial Products and Commercial Services (Sep 2023) (DEVIATION NOV 2025)	57
	2852.233-70 Protests Filed Directly with the Department of Justice (NOV 2020)	57
	Tailoring: Quote Submission Instructions/Evaluation and Award Methodology/SAM Registration/APEX/FOIA	57
M	Evaluation Factors for Award	60
	52.212-2 (DEV) Evaluation-Commercial Products and Commercial Services (Nov 2021) (DEVIATION NOV 2025)	60

52.217-5 (DEV) Evaluation of Options (July 1990) (DEVIATION AUG 2025)..... 60

Section B - Supplies or Services and Prices/Costs

SCHEDULE OF SUPPLIES/SERVICES

CONTINUATION SHEET

ITEM NO.	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
0001	Paramedic Services, 1 each staff. See attached Statement of Work. FCI Herlong Base Year - Effective Date of award (EDOA) through 12 months from EDOA. Estimated Maximum PSC: Q999 Base Period **Delivery Schedule:** Quantity: 1,880.000000 Delivery Address: Federal Bureau of Prisons FCI Herlong 741-925 Herlong Access Rd A25 Herlong, CA 96113	1,880	SS	$_____	$_____
ITEM NO.	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
0002	Phlebotomy Services, 1 each staff. See attached Statement of Work. FCI Herlong Base Period - Effective Date of award (EDOA) through 12 months from EDOA. Estimated Maximum PSC: Q999 Base Period	1,880	SS	$_____	$_____
ITEM NO.	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
0003	Radiology Technician Services, 1 each staff. See attached Statement of Work. FCI Herlong Base Period - Effective Date of award (EDOA) through 12 months from EDOA. Estimated Maximum PSC: Q999 Base Period	1,880	SS	$_____	$_____
ITEM NO.	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
0004	Licensed Vocational Nurse Services, 1 each staff. See attached Statement of Work. FCI Herlong Base Period - Effective Date of award (EDOA) through 12 months from EDOA. Estimated Maximum PSC: 6640 Base Period	1,880	SS	$_____	$_____
ITEM NO.	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
0005	Dental Assistant Services, 2 each staff. See attached Statement of Work. FCI Herlong Base Period - Effective Date of award (EDOA) through 12 months from EDOA. Estimated Maximum PSC: Q999 Base Period	3,760	SS	$_____	$_____
ITEM NO.	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT

0006	Paramedic Services, 1 each staff. See attached Statement of Work. FCI Herlong Performance Period One - 13 Months from Effective Date of Award (EDOA) through 24 months from EDOA. Estimated Maximum PSC: Q999 Unexercised Option	1,880	SS	$_____	$_____
ITEM NO.	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
0007	Phlebotomy Services, 1 each staff. See attached Statement of Work. FCI Herlong Performance Period One - 13 months from Effective Date of Award (EDOA) through 24 months from EDOA. Estimated Maximum PSC: Q999 Unexercised Option	1,880	SS	$_____	$_____
ITEM NO.	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
0008	Radiology Technician Services, 1 each staff. See attached Statement of Work. FCI Herlong Performance Period One - 13 Months from Effective Date of award (EDOA) through 24 months from EDOA. Estimated Maximum PSC: Q999 Unexercised Option	1,880	SS	$_____	$_____
ITEM NO.	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
0009	Licensed Vocational Nurse Services, 1 each staff. See attached Statement of Work. FCI Herlong Performance Period One - 13 months from Effective Date of Award (EDOA) through 24 months from EDOA. Estimated Maximum PSC: Q999 Unexercised Option	1,880	SS	$_____	$_____
ITEM NO.	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
0010	Dental Assistant Services, 2 each staff. See attached Statement of Work. FCI Herlong Performance Period One - 13 months from Effective Date of Award (EDOA) through 24 months from EDOA. Estimated Maximum PSC: Q999 Unexercised Option	3,760	SS	$_____	$_____
ITEM NO.	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
0011	Paramedic Services, 1 each staff. See attached Statement of Work. FCI Herlong Performance Period Two - 25 Months from Effective Date of Award (EDOA) through 36 months from EDOA. Estimated Maximum PSC: Q999 Unexercised Option	1,880	SS	$_____	$_____
ITEM NO.	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
0012	Phlebotomy Services, 1 each staff. See attached Statement of Work. FCI Herlong Performance Period Two - 25 months from Effective Date of Award (EDOA) through 36 months from EDOA. Estimated Maximum PSC: Q999 Unexercised Option	1,880	SS	$_____	$_____
ITEM NO.	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT

0013	Radiology Technician Services, 1 each staff. See attached Statement of Work. FCI Herlong Performance Period Two - 25 Months from Effective Date of award (EDOA) through 36 months from EDOA. Estimated Maximum PSC: Q999 Unexercised Option	1,880	SS	$_____	$_____
ITEM NO.	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
0014	Licensed Vocational Nurse Services, 1 each staff. See attached Statement of Work. FCI Herlong Performance Period Two - 25 months from Effective Date of Award (EDOA) through 36 months from EDOA. Estimated Maximum PSC: Q999 Unexercised Option	1,880	SS	$_____	$_____
ITEM NO.	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
0015	Dental Assistant Services, 2 each staff. See attached Statement of Work. FCI Herlong Performance Period Two - 25 months from Effective Date of Award (EDOA) through 36 months from EDOA. Estimated Maximum PSC: Q999 Unexercised Option	3,760	SS	$_____	$_____
ITEM NO.	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
0016	Paramedic Services, 1 each staff. See attached Statement of Work. FCI Herlong Performance Period Three - 37 Months from Effective Date of Award (EDOA) through 48 months from EDOA. Estimated Maximum PSC: Q999 Unexercised Option	1,880	SS	$_____	$_____
ITEM NO.	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
0017	Phlebotomy Services, 1 each staff. See attached Statement of Work. FCI Herlong Performance Period Three - 37 months from Effective Date of Award (EDOA) through 48 months from EDOA. Estimated Maximum PSC: Q999 Unexercised Option	1,880	SS	$_____	$_____
ITEM NO.	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
0018	Radiology Technician Services, 1 each staff. See attached Statement of Work. FCI Herlong Performance Period Three - 37 Months from Effective Date of award (EDOA) through 48 months from EDOA. Estimated Maximum PSC: Q999 Unexercised Option	1,880	SS	$_____	$_____
ITEM NO.	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
0019	Licensed Vocational Nurse Services, 1 each staff. See attached Statement of Work. FCI Herlong Performance Period Three - 37 months from Effective Date of Award (EDOA) through 48 months from EDOA. Estimated Maximum PSC: Q999 Unexercised Option	1,880	SS	$_____	$_____
ITEM NO.	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT

0020	Dental Assistant Services, 2 each staff. See attached Statement of Work. FCI Herlong Performance Period Three - 37 months from Effective Date of Award (EDOA) through 48 months from EDOA. Estimated Maximum PSC: Q999 Unexercised Option	3,760	SS	$_____	$_____
ITEM NO.	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
0021	Paramedic Services, 1 each staff. See attached Statement of Work. FCI Herlong Performance Period Four - 49 Months from Effective Date of Award (EDOA) through 60 months from EDOA. Estimated Maximum PSC: Q999 Unexercised Option	1,880	SS	$_____	$_____
ITEM NO.	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
0022	Phlebotomy Services, 1 each staff. See attached Statement of Work. FCI Herlong Performance Period Four - 49 months from Effective Date of Award (EDOA) through 60 months from EDOA. Estimated Maximum PSC: Q999 Unexercised Option	1,880	SS	$_____	$_____
ITEM NO.	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
0023	Radiology Technician Services, 1 each staff. See attached Statement of Work. FCI Herlong Performance Period Four - 49 Months from Effective Date of award (EDOA) through 60 months from EDOA. Estimated Maximum PSC: Q999 Unexercised Option	1,880	SS	$_____	$_____
ITEM NO.	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
0024	Licensed Vocational Nurse Services, 1 each staff. See attached Statement of Work. FCI Herlong Performance Period Four - 49 months from Effective Date of Award (EDOA) through 60 months from EDOA. Estimated Maximum PSC: Q999 Unexercised Option	1,880	SS	$_____	$_____
ITEM NO.	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
0025	Dental Assistant Services, 2 each staff. See attached Statement of Work. FCI Herlong Performance Period Four - 49 months from Effective Date of Award (EDOA) through 60 months from EDOA. Estimated Maximum PSC: Q999 Unexercised Option	3,760	SS	$_____	$_____
ITEM NO.	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
0026	Paramedic Services, 1 each staff. See attached Statement of Work. FCI Herlong 6 Mo Additional Performance Period Estimated Maximum PSC: Q999 Unexercised Option	940	SS	$_____	$_____
ITEM NO.	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT

0027	Phlebotomy Services, 1 each staff. See attached Statement of Work. FCI Herlong 6 Mo Additional Performance Period Estimated Maximum PSC: Q999 Unexercised Option	940	SS	$_____	$_____
ITEM NO.	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
0028	Radiology Technician Services, 1 each staff. See attached Statement of Work. FCI Herlong 6 Mo Additional Performance Period Estimated Maximum PSC: Q999 Unexercised Option	940	SS	$_____	$_____
ITEM NO.	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
0029	Licensed Vocational Nurse Services, 1 each staff. See attached Statement of Work. FCI Herlong 6 Mo Additional Performance Period Estimated Maximum PSC: Q999 Unexercised Option	940	SS	$_____	$_____
ITEM NO.	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
0030	Dental Assistant Services, 2 each staff. See attached Statement of Work. FCI Herlong 6 Mo Additional Performance Period Estimated Maximum PSC: Q999 Unexercised Option	1,880	SS	$_____	$_____

AGGREGATE TOTAL: $_____(BASE PLUS ALL PERFORMANCE PERIODS)

Section C - Description/Specifications/Statement of Work

Clauses By Full Text

Statement of Work: Chemistry Analyzers

Subject
The Federal Bureau of Prisons (BOP), Field Acquisition Office (FAO), located in Grand Prairie, Texas, intends to make a single award of an indefinite delivery/requirements type Blanket Purchase Agreement (BPA) with firm fixed prices to a responsible entity for the provision of the following services: **one (1) Paramedic, one (1) Phlebotomy, one (1) Radiology Technician, one (1) Licensed Vocation Nurse (LVN), and two (2) Dental Assistants** as prescribed within the description of duties for each position listed below. Services will be provided for the inmate population incarcerated at the **Federal Correctional Institution (FCI) Herlong**, and/or the **Federal Prison Camp (FPC)** as noted located in **Herlong, California**. General information regarding the Federal Bureau of Prisons and its facilities is located at www.bop.gov.

Place of Performance
Services will be performed at the **FCI Herlong**, primarily within the Health Services departments at the **Federal Correctional Institution (FCI) or Federal Prison Camp (FPC) as noted**. The **FCI and FPC Herlong** is located at **741-925 Access Rd A-25, Herlong, California 96113**.

The required services are as follows:

One (1) Each Paramedic Services:

The Federal Bureau of Prisons intends to make an award for the provision of a Paramedic. The Paramedic shall provide services at the Federal Correctional Institute, and Federal Prison Camp at Herlong, California. The government reserves the right to award without discussion and to award as a single award. Therefore, each initial quote should contain the quoter's best terms from a cost or price standpoint. The Blanket Purchase Agreement (BPA) period will be in effect from the date of the award through 12 months, with the option to renew.

Schedule of Performance

A session equals one (1) hour of work for the Paramedic. The proposed schedule for these services will be between the hours of **7:00** a.m. and 3**:00** p.m., **4 – 5** da**ys** per week, with a thirty (30) minute unpaid lunch period, (if applicable), Monday through Friday (except Federal holidays). An estimate of forty (40) sessions per week will be required. The ing Officer's Representative (COR) will be responsible for defining each weekly schedule. The schedule is subject to change based on the variable needs of the institution and the unpredictable nature of the correctional environment. Upon agreement, any changes to the schedule must be coordinated with the Contracting Officer's Representative (COR) assigned under the Blanket Purchase Agreement (BPA).
Due to the nature of the correctional setting, delays in performance of work may be expected. Such delays may include but are not limited to inclement weather, electrical or mechanical problems, or other security matters. When BPA employees report to the institution but are unable to perform services due to such delays, the BPA employees will be paid for one (1) session. Normally, any remaining sessions for that day will be suspended and the BPA employees will be free to leave and will not be paid for the remaining non-performed sessions. However, if the institution requests that

the BPA employees remain at the institution for eventual performance, they shall be paid for such sessions.

Performance Conditions
The Paramedic shall provide the services described independent of Government supervision. Services will be reviewed by the Health Service Administrator and/or his/her designee. The performance of these services will also be monitored by the designated Contracting Officer's Representative (COR). The Contractor's payment will be based on the provision of an end product or accomplishment of a specific result.

Method of Performance
The contractor is responsible for provision of the services as listed below:

All duties will be performed in accordance with standards and methods generally accepted within the contractor's field of expertise. Provision of professional Registered Nurse (RN) services to the inmate population, as follows:

(1) Evaluate patients and provision of therapeutic treatment as ordered by Health Services clinical staff.
(2) Triage sick call requests for scheduling with the Mid-Level Provider.
(3) Administer medications as prescribed or ordered for the patients, including immunizing agents and perform skin testing. Perform venipuncture and administer and withdraw intravenous fluids.
(4) Counseling patients as needed under the direction of mid-level provider and/or supervising physician.
(5) Securing a health history from the inmate patient and recording findings in the bureau electronic medical record (BEMR).
(6) Recording diagnostic testing, i.e., venipuncture for laboratory studies, visual acuity testing, electrocardiogram (EKG), per instructions from the health care providers (Mid-Level Practitioner, or Physician).
(7) Assist the Physician and Mid-Level Practitioners in the management and oversight of chronic care clinics. Possess basic knowledge of treatment of chronic health problems such as hypertension, diabetes, asthma.
(8) Review clinical records to ensure data is entered legibly and in the appropriate section of medical record.
(9) Paramedic should have knowledge of optometry to screen for distance and near vision, and color blindness.
(10) The Paramedic will have the ability and skill to operate EKG, Clinitek equipment, and other CLIA waived laboratory equipment.
(11) The Paramedic will have the ability to provide basic first aid, CPR Health Care Provider, and preventive care guidance in treating a variety common illness/injuries.
(12) The Paramedic will log inmates' arrivals and departures to the department, and monitor the patients flow in and out of the department
(13) Carry out Physician and other Practitioner(s) orders according to the condition of the patient; to include observation, reporting, and recording patient condition(s) and vital signs in BEMR (Bureau Electronic Medical Record),
and assisting with scheduling and triage of patients reporting to triage/sick call.
(14) The Paramedic will participate in Improving Organizational Performance (IOP) by collecting and aggregating data.
(15) The Paramedic will demonstrate knowledge and skills necessary to provide care appropriate to any age-related needs of the patients in their care.
(16) Paramedic will be responsible for entries in BEMR (Bureau Electronic Medical Record) for scheduled patients for the day, ensuring appropriate documentation in the medical.

(17) Paramedic will obtain pertinent medical record information from the BEMR (Bureau Electronic Medical Record) and prepare the information in an organized manner for Physicians, other Practitioners, and Consultants (both internal and external) to review when examinations are scheduled.

The BPA employee must have the ability to maintain confidentiality of medical records and sensitive data.

Inmate records are the sole property of the Federal Bureau of Prisons and are confidential. No medical record / information shall be released by the BPA employees to any person, without prior approval of the institution Health Service Administrator or designee and the FOIA/Privacy Act Branch of the Office of General Counsel in the Central Office, Washington D.C. The BPA employees shall maintain confidentiality of all information handled in accordance with policies identified in the Statement of Work.

Education Background and Qualifications
The BPA Employee shall be certified/licensed in the chosen field of expertise, provide verification of credentials (education, current licensure, status of competency, continuing medical education), and hold a current State license that permits them to practice their professional specialty in the State of California. Applicant must have a Paramedic license and comply with the responsibilities previously described. The BPA Employee must maintain current Cardio-Pulmonary Resuscitation (CPR) certification in accordance with the American Red Cross or the American Heart Association. BPA Employee will be required to provide supporting documentation and/or provide copies of diplomas, certificates, and/or licenses, etc. Also, the contractor is required to provide verification of education, licensure, proof of professional liability insurance of at least $100,000.00, and a letter of recommendations from three (3) peers.

Correctional experience is desirable, but not required.

Quoters must specifically identify the individuals that will be performing these services under any subsequent BPA award. The quoter must provide proof that their candidates meet all qualifications. The candidates' name and qualifications must be submitted at the time the offer is submitted. All quoters must submit with their proposal: a resume, photocopies of documents evidencing education and training.

Supplies
All supplies that theor may routinely need shall be supplied by Federal Correctional Institution Herlong, California. These supplies will normally include any materials needed to perform the services covered under this Blanket Purchase Agreement (BPA). All records maintained by the contractor under this BPA will remain property of Federal Correctional Institution, Herlong, California.

The BPA employees shall be responsible for providing his/her own white smocks/lab coats. Professional attire must be worn under the smocks/lab coats. Jeans of any color, T-shirts, sandals (of any type), tank tops, and sweat shirts and pants are not considered appropriate professional attire.

Inmate Management
Patients shall be accorded impartial access to treatment or accommodations that are available or medically indicated, regardless of race, creed, sex, national origin or religion. Services provided under the sponsorship of the contractor shall be departments/services of the medical or dental department. Staffing shall be commensurate with the expected needs of patients and within the scope of services offered.

The BPA employee will have involved himself/herself in the Institution Familiarization Program as required by policy. He/she is to be constantly aware of security and maintain a professional relationship with the inmates at all times. Any violations of the institution rules and regulations are to be brought immediately to the attention of an appointed Government employee for prompt, proper action.

Provision of services under this BPA will require frequent and unsupervised contact with inmates.

The BPA employees will not be responsible for the management of inmates. The BPA employees will report any infraction of rules and regulations by any inmate at the institution's healthcare to a staff member working with them or the COR.

Institution Security

The BPA employees agree to adhere to all regulations prescribed by each of the individual institutions in regards to the safety, custody, and conduct of inmates. The BPA employees will be required to attend a one-time orientation program, consisting of approximately four (4) hours, prior to performing any services under this contact. The date and time for this orientation will be mutually agreed upon by both parties, and reimbursement for attendance will be at the hourly BPA rate.

Other Provisions

In accordance with the Federal Bureau of Prisons' Acquisition Policy, Part 37.103©), the following provisions are applicable to the work being performed under this Blanket Purchase Agreement (BPA):

a. The service is a contractual arrangement and not a personnel appointment.

b. Payment shall be based on the provision of an end result or the accomplishment of specific result.

c. The service does not constitute an employer/employee relationship.

d. The BPA employees will not be subject to Government supervision, except for security related matters. However, the BPA employees' performance shall be closely monitored.

Restrictions On Contract Workers

The Contractor shall not:

1. Supervise inmates
2. Supervise Bureau of Prisons staff
3. Participate in inmate accountability
4. Requisition, sign for, or pick up supplies
5. Formulate policy or procedures
6. Attend meetings, recalls or staff functions.

Payment Terms

Contractor must provide a means for electronic payment to include bank routing and account number. Payment terms as specified in FAR 52.212-4(g). The Government will make payment in accordance with the Prompt Payment Act (31 U.S.C. 3903 and prompt payment regulations at 5 CFR Part 1315. The contractor can however offer discount payment terms for prompt payments as specified in block 12 on the SF-1449 form of this solicitation. Partial or half sessions will not be authorized for payment.

Contractor, **if an individual other than a corporation**, upon BPA award must complete several Human Resource Management forms. The forms are referenced as follows:

1. Direct Deposit (SF-1199A)
2. Federal/State/City/County Tax forms (as applicable)
3. Employee Locator Form (DOJ-233)
4. Race and National Origin Identification (SF-181)
5. Self-Identification of Handicap (SF-256)
6. Employment Eligibility Verification (I-9)

One (1) Each Phlebotomy Services:

The Federal Correctional Institution (FCI) in Herlong, CA, intends to make a single award of a firm fixed price requirements type BPA to a responsible entity for the provision of Phlebotomy Services as prescribed in the description of duties listed below at the FCI and Satellite Prison Camp (SPC) in Herlong, CA.

Schedule

A session is defined as one hour. The contractor will normally provide five (5), eight (8) hour sessions per week, excluding Federal Holidays. Work hours will normally be Monday through Friday between 6:00AM and

2:00PM. These hours may be adjusted to meet the needs of the institution. The contractor shall not normally exceed 40 hours per week.
Due to the nature of the correctional setting, delays in performance of work may be experienced. Such delays may include but are not limited to inclement weather, electrical or mechanical problems, or other security matters. When BPA employees report to the institution but are unable to perform services due to such delays, the contractor will be paid for one session. Normally, any remaining sessions for that day will be suspended and the contractor will be free to leave, and the contractor will not be paid for the remaining unperformed sessions. However, if the institution requests that the contractor remain at the institution for eventual performance, the contractor shall be paid for such sessions. If the contractor fails to provide coverage, the Government may seek contractual remedy.

Education and Experience

The Contractor shall have valid license to practice in the state of California as a Medical Assistant, Laboratory Assistant, Emergency Medical Technician, or Phlebotomist, or hold national certification. The Contractor must be Cardio-Pulmonary Resuscitation (CPR) certified, in accordance with the American Heart Association or American Red Cross.

The Contractor must provide proof of experience with specimen collection, packaging and shipment to referral laboratories with knowledge of maintaining appropriate records and proof of experience of working in a correctional setting along with three (3) letters of reference.

The Contractor shall provide a resume and requested documentation along with copy of all diplomas and/or certificates to support stated qualification.

Health Requirements

The contractor shall ensure their employee is free of communicable diseases. Any individual who subsequently develops a medical condition which might reasonably be expected to place other workers, inmates, or the public at risk shall be immediately removed from affected activities. In any such case, the contractor shall be responsible, at no additional cost to the institution, for securing the services of any replacement personnel required to perform this BPA.

The Blanket Purchase Agreement (BPA) employee may be required to submit to testing for/or provide evidence acceptable to the clinical director of recent testing for tuberculosis of other communicable diseases. Failure to submit to testing for or providing acceptable evidence of recent testing for or immunity to selected communicable diseases shall be grounds for denying access to inmates. The BPA employee shall immediately inform, in writing to the Contract Officer's Representative (COR) and Administrative Contracting Officer, and adverse action taken by any regulatory body involving certification. This includes, but is not limited to, suspensions, revocations, or restrictions on licensure as a Medical Assistant, Laboratory Assistant, Emergency Medical Technician, or Phlebotomist.

Description of Duties

The contractor will provide Phlebotomy Services in a method commensurate with the local community. These services, although not directly supervised, will be reviewed by a physician on staff at the institution. The performance of these services will also be verified by the designated (COR).
The Contractor will be responsible for the following:

- Assist the Physician, Advanced Practice Provider, and/or Nurse/ Paramedic with patient flow in a clinic setting by measuring the patient's vital signs and weight, assisting with EKGs (if covered under licensure scope of practice), and scanning laboratory results in the Bureau Electronic Medical Record (BEMR).

- Organize, schedule, and perform laboratory studies, basic blood draws, specimen collection and process within the Health Service Unit or open, semi-open and locked units, to include A&O in-processing, DNA per procedure, vaccine programs and PPD updates.

- Keep the work area neatly organized

- Spin down blood, prepare and ensure specimens are packed and transported according to the BPA or BOP Reference Lab and document per Health Services Unit Laboratory Procedures. Ensure that lab requests are completed properly and all reports are returned from the BPA lab, provider notified, log results in as received, follow up appropriately, and file results in lab and the Bureau Electronic Medical Record (BEMR).

- Maintain the needle/syringe, security, accountability, and inventory

- Acquire and maintain knowledge of the Health Services Manual and Unit Procedures necessary to accomplish the mission described herein, ensuring that the Laboratory Procedure Manual is updated accordingly.

- Assist the Health Service Administrator (HSA) or his/her designee in the coordination of BOP and BPA Reference Lab contact, CLIA re-certification, maintenance of equipment, including routine equipment checks, and notification of needed supplies.

- Assist the HSA and Clinical Director with providing input for policies that deal with the laboratory program.

- Effectively work with both staff and inmates in the performance of BPA services.

The above information provides a generalized description of some of the activities involved in the scope of work. The contractor must be able to adapt to newly established policies and guidelines (i.e. Joint Commission on Accreditation of Healthcare Organization (JCAHO), Bureau of Prisons (BOP), American Correctional Association (ACA), etc.) to the existing Medical Laboratory Technician program, as applicable, and help provide support to implement procedures accordingly.

Attire
The contractor is expected to wear professional clothing while on duty (scrub uniforms are approved, navy blue or black only). The attire worn shall also be appropriate for the correctional environment in which the BPA employee will be performing. If clothing is determined not to be appropriate, the BPA employee will be denied entry into the facility.

Supplies/Equipment
All supplies and equipment the Contractor needed, while at the institution, will be furnished by the institution. These supplies normally will include examination equipment and a method/material for recording findings. If special equipment is required by the Contractor, he or she shall make a request in writing to the Health Services Administrator. All records maintained by the Contractor under this BPA will remain the property of the Government.

Restrictions On Contract Workers
The Contractor shall not supervise inmates, supervise Bureau of Prisons staff, participate in inmate accountability, requisition, sign for, or pick up supplies, formulate policy or procedures, or attend meetings, staff recalls or staff functions.

Inmate Management
The provision of services under this proposed BPA will require frequent and unsupervised contact with inmates. The Contractor will not be responsible for the management of inmates except to ensure that those inmates involved in activities within the Contractor's scope of work shall abide by all rules, in effect, to ensure the safety and well-being of all participants. The Contractor will report any infractions of rules and regulations by any inmate to the Health Services Administrator or the Contracting Officer's Representative (COR).
Patient Management
The contractor will be responsible for receiving patients and explaining procedures to alleviate undue anxiety, submitting reports and evaluations as requested. The contractor will be responsible for following directives and comply with Bureau of Prisons Health Services Manual, local institutional mandates, and the Health Services Department's policies in the management of all patient encounters.

Patients shall be afforded impartial access to treatment or accommodations that are available or medically indicated, regardless of race, creed, sex, national origin, or religion. Staffing shall be commensurate with the expected needs of the patients and within the scope of services offered. The contractor shall NOT provide information to the inmates(s). If the situation arises where inmate(s) are required to be provided information, the Clinical Director, Health Services Administrator (HSA), or COR shall provide any information the inmate(s) are to receive. The contractor is required to maintain an open line of communication with the Clinical Director, HSA, and COR.

Institution Security
The contractor/BPA employees shall agree to all regulations prescribed by the institution for the safety, custody, and conduct of inmates. The BPA employee will be required to operate a system of records as identified for medical treatment documentation, and will require adherence to the Privacy Act of 1974. The BPA employee will be required to sign in and out of the institution for accountability purposes. A badge will be issued and worn at all times for proper identification.

One (1) Each Diagnostic Radiology Technician Services:

The Federal Buruau of Prisons itends to establish a Blanket Purchase Agreement (BPA) for the provision of Radiology Technician Services to be performed by one (1) Diagnostic Radiology Technician. Services will be performed at the Federal Correctional Institution (FCI) at Herlong, California.
Schedule
These services will be required five (5) days per week, normally consisting of eight, one (I) hour sessions per day, Monday through Friday (except Federal holidays), normally between the hours of 7:00 am -3:00 pm. The facility is expected to require an average of 40 sessions per week. The Contracting Officer's Representative (COR) or Health Services Administrator (HSA) will be responsible for defining each weekly schedule. Upon agreement, any changes to the schedule must be coordinated with the HSA or COR assigned. However, the daily "call-out" will dictate the exact schedule and sessions required. A mutually agreed upon schedule will be determined following award.

The schedule is subject to change based on the variable needs of the institution and the unpredictable nature of the correctional environment. Advance notice of schedule changes will be given whenever possible. Due to the nature of the correctional setting, delays in performance of work may be expected. Such delays may include, but are not limited to inclement weather, electrical or mechanical problems, or other security matters. In the event of any delay in performance, the contractor will be paid for a minimum one (I) session. Normally, any remaining sessions for that day will be suspended, the Contractor will be free to leave, and the Contractor will not be paid for the remaining incomplete sessions. However, if the institution requests that the Contractor remain at the institution for eventual performance, the Contractor will be paid for such sessions. In the event of any scheduled absence of more than two days, the contractor may be expected to provide replacement

coverage, unless prior arrangements have been made between the Contractor and the HSA or COR. Upon agreement, any changes to the schedules must be coordinated with the contracting officer

Description of Services
The contractor shall generally provide the following Radiology Technician services which may include, but are not limited to, the items listed below. Therefore, the contractor shall be capable of performing any and all radiology procedures needed without any technical support. The current radiological equipment provided at the FCI Herlong is digital. Knowledge of digital equipment is preferred but not required.

Description of Duties are as follows:

- Perform routine radiologic procedures ordered by the medical staff for the inmate population at the FCI Herlong.
- Evaluate radiologic equipment for calibrations and repairs.
- Possess knowledge of basic emergency situations that may occur during special radiologic procedures.
- Schedule exams and maintain records.
- Possess knowledge of various pathological abnormalities as demonstrated by radiographic imaging.
- Independently assess and select technical exposure factors and positions necessary to obtain a proper quality diagnostic exam.
- Receive patients and explain procedures to alleviate undue anxiety.
- Independently perform all radiographic procedures; i.e., chest, bone, skull, spines, and portable x-rays, etc.
- Notify Radiologist, or referring Physician of any preliminary abnormalities seen while patient is undergoing an exam, so that additional views, or exams can be ordered if needed.
- Coordinate transfer of patient radiologic records to ensure continuity of care.
- Work with Clinical Director to ensure monitoring and evaluation activities are completed.
- Act as liaison between radiologist and medical staff.
- Receive any required training and orientation and comply with correctional techniques as they pertain to medical services.
- Develop a working knowledge of FCI Herlong medical protocols.
- Wear outer protective clothing and obey CDC universal precautions at all times. Function in other duties commensurate of a Radiological Technician.

Additional Duties (may also include):

- Computerization and printing of daily log.
- Computerization and printing of exam requisitions.
- Printing of all folder and exam labels.
- Completing of all x-ray studies ordered by the medical staff.
- Preparing x-rays for shipment to the radiologist for interpretation.
- Transport of-rays to radiologist for interpretation.
- Assisting the staff with maintenance of equipment and supplies, and notifying staff when supplies are needed.
- Conducting quality assurance tests and daily maintenance on x-ray equipment as needed.
- Assisting with FDA inspections and preparation for Joint Commission and program review as needed.
- Assuring that all x-ray requests are completed properly; and Computerization of patient logs and repeat analysis.

Supplies
All equipment and supplies that the contractor may routinely need will be provided by the Government. These supplies normally will include any materials needed to perform the services required. The Contractor and/or their employee(s) will not bring in or remove any equipment, tools or supplies without prior approval of the HSA.

Education and Experience and/or Special Qualification Requirements
The Radiologic Technologist shall be fully licensed to perform radiological procedures by a State Radiologic Technology Board and possess current ARRT certification. The individuals shall also have obtained a minimum of 1 year related work experience as a Radiologic Technologist and possess current CPR certification in accordance with the American Red Cross or American Heart Association.

The contractor must specifically identify the individual who will be performing these services under any subsequent Blanket Purchase Agreement (BPA) award. The contractor must provide proof that their candidate meets all qualifications. The candidate's name and qualifications must be submitted at the time the quote is submitted. Contractor must submit with their quote a resume, photocopies of documents evidencing education, license, certification and training. The contractor is responsible for submitting any updated license/certification to the HSA as the license is renewed.

Attire
The contractor is expected to navy blue scrubs or professional attire (scrubs preferred). The attire worn shall also be appropriate for the correctional environment in which the BPA employee will be performing.
Health Requirements
The contractor shall ensure their employee is free of communicable diseases. Any individual who subsequently develops a medical condition which might reasonably be expected to place other workers, inmates, or the public at risk shall be immediately removed from affected activities. In any such case, the contractor shall be responsible, at no additional cost to the institution, for securing the services of any replacement personnel required to perform this Blanket Purchase Agreement (BPA).

The Contractor will be current with all immunizations required to work in a healthcare setting and proof of documentation will be available for the USP prior to the first day of work. These immunizations include a complete hepatitis B series, MMR or proof of immunity if born prior to 1957and varicella immunization or history of illness. An annual tuberculin skin test record, a two-step tuberculosis skin test, or chest x-ray prior to BPA work will be required for TB screening. Annual TB screening and annual influenza is required during BPA employment. Contractors with a positive TB or tuberculin skin test history will have documentation of no active disease by an outside physician prior to BPA start. If the Contractor subsequently develops a medical condition which might be reasonably expected to place other workers, patients, or the public at risk, he/she will immediately be removed from all patient care activities.

Patient Management
The contractor will be responsible for receiving patients and explaining procedures to alleviate undue anxiety, submitting reports and evaluations as requested. The contractor will be responsible for following directives and comply with Bureau of Prisons Health Services Manual, local institutional mandates, and the Health Services Department's policies in the management of all patient encounters.
Patients shall be afforded impartial access to treatment or accommodations that are available or medically indicated, regardless· of race, creed, sex, national origin, or religion. Staffing shall be commensurate with the expected needs of the patients and within the scope of services offered. The contractor shall NOT provide information to the inmates(s). If the situation arises where inmate(s) are required to be provided information, the Clinical Director, Health Services Administrator (HSA), or COR shall provide any information the

inmate(s) are to receive. The contractor is required to maintain an open line of communication with the Clinical Director, HSA, and COR.

Inmate Management

The contractor, as well as all employees of the contractor, agrees to adhere to all regulations prescribed by the institution in regards to the safety, custody, and conduct of inmates. The custody of federal inmates remains a primary responsibility of the designated facility. The provision of services under this Blanket Purchase Agreement (BPA) will require frequent and unsupervised contact with inmates. The BPA employee will not be responsible for the management of inmates except to ensure that those inmates involved in activities within the BPA employee's scope of work shall abide by all rules, in effect, to ensure the safety and well-being of all participants. The BPA employee will report any infractions of rules and regulations by any inmate to the Health Service Administrator.

Institution Security

The Bureau of Prisons requires all non-employees to sign in and out of the institution for security reasons. BPA staff will sign the log, indicating the date of visit to the institution, time of arrival, and time of departure. The Contractor or its' employees may, at any time, be removed from the institution at the discretion of the CEO. Additionally, BPA staff will each be required to wear an ID badge, provided by the Government, at all times within the confines of the institution. The Contractor will maintain and furnish time and attendance reports as required by the Health Service Administrator. At the time of arrival and before entry into the institution, contractors may be required to submit their possessions for passage through an x-ray screening machine and may be required to clear a walk through metal detector.

The contractor, as well as all employees of the contractor, must undergo a security clearance process prior to being permitted to enter the institution. It is the responsibility of the contractor to make sure that those employees submit the required information and complete the necessary actions in a timely manner so as to complete their investigations as expeditiously as possible. Additionally, it is the responsibility of the contractor to provide employees to fulfill this BPA who are reasonably certain to be able to successfully complete the security scrutiny. This may involve a more intensive screening process on the part of the contractor.

Contractor employees will be provided with a security and BOP procedures orientation session prior to performing any services under this contact. The date and time for this orientation will be coordinated by the Reentry Coordinator/HSA. Refresher training in security and BOP procedures may be required annually. Compensation to the contractor for time spent in this, and any other required security related training, will be at the BPA rate, prorated hourly.

Method of Performance

The services, although not directly supervised, shall be reviewed by institution staff to ensure Blanket Purchase Agrement (BPA) compliance. The Contractors performance will be evaluated in accordance with FAR Part 42. BPA monitoring reports will be prepared by the contracting officer and maintained in the contract file. The Government reserves the right to suspend, limit or revoke the Contractor's privileges at the facility due to violations of security procedures.

When an observation indicates defective performance, the Contracting Officer may issue a Discrepancy Report to the Contractor. The Contractor shall address any Discrepancy Report in writing to the Contracting Officer within ten calendar days of notification, indicating any corrective action taken to rectify the deficiency.

Non-Personal Services/Common Law Employee Information

The service is a contractual arrangement and not a personnel appointment. Payment is based on the provision of an end product or the accomplishment of a specific result. The service does not constitute an employer/employee relationship. The contractor will not be subject to Government supervision, except for security related matters. However, contractor performance shall be monitored. Payment shall be based on provision of an end result or the accomplishment of a specific result. In an effort to ensure proper preparation of Contractor payment vouchers, all hours must be documented by the Contractor showing hours worked each visit.

Restrictions On Contract Workers
The Contractor shall not supervise inmates, supervise Bureau of Prisons staff, participate in inmate accountability, requisition, sign for, or pick up supplies, formulate policy or procedures, or attend meetings, staff recalls or staff functions.

The contractor may attend team meetings, departmental meetings, or other meetings relating to the involvement of the services to be provided by terms of the contract. Some meetings will be required and accomplished on contract time.

One (1) Each Licensed Vocational Nurse (LVN) Services:

The Federal Correctional Institution (FCI Herlong) in Herlong, CA, intends to make a single award of a firm fixed price requirements type contract to a responsible entity for the provision of Licensed Vocational Nurse (LVN) as prescribed in the description of duties listed below at the FCI and Satellite Prison Camp (SCP) in Herlong, CA.

Schedule
A session is defined as one hour. The contractor will normally provide 8 (1) hour sessions per day, 5 days per week. Work hours will normally be between 07:00-15:30 with a 30-minute unpaid lunch break. These hours may be adjusted to meet the needs of the institution. The contractor shall not normally exceed 40 hours per week.

Due to the nature of the correctional setting, delays in performance of work may be experienced. Such delays may include but are not limited to inclement weather, electrical or mechanical problems, or other security matters. When contract employees report to the institution but are unable to perform services due to such delays, the contractor will be paid for one session. Normally, any remaining sessions for that day will be suspended and the contractor will be free to leave and the contractor will not be paid for the remaining unperformed sessions. However, if the institution requests that the contractor remain at the institution for eventual performance, the contractor shall be paid for such sessions. In the event of any absence, the contractor may make up his/her time so long as it does not exceed 30 hours in any given week. If the contractor fails to provide coverage, the Government may seek contractual remedy.

Education and Experience
The individual/organization providing Licensed Vocational Nurse services under this contract award must have graduated from an accredited Vocational Nursing school or program. The contractor employee shall maintain current licensure as a Vocational Nurse in the State of California or Nevada. One year, or more, of experience in a correctional environment is preferred, but not required.

Supplies and Equipment
All equipment and supplies that the contractor may routinely need will be provided by the Government. These supplies normally will include any materials needed to perform the services required. The Contractor and/or their employee(s) will not bring in or remove any equipment, tools or supplies without prior approval of the HSA.

Health Requirements
The contractor shall ensure their employee is free of communicable diseases. Any individual who subsequently develops a medical condition which might reasonably be expected to place other workers, inmates, or the public at risk shall be immediately removed from affected activities. In any such case, the contractor shall be responsible, at no additional cost to the institution, for securing the services of any replacement personnel required to perform this contract.

The contract employee may be required to submit to testing for/or provide evidence acceptable to the clinical director of recent testing for tuberculosis of other communicable diseases. Failure to submit to testing for or providing acceptable evidence of recent testing for or immunity to selected communicable diseases shall be grounds for denying access to inmates. The contract employee shall immediately inform, in writing to the Contract Officer's Representative (COR) and Administrative Contracting Officer, and adverse action taken by any regulatory body involving certification. This includes, but is not limited to, suspensions, revocations, restrictions on licensure as a Licensed Vocational Nurse.

Description of Duties

All duties shall be performed in accordance with standards and methods generally accepted within the field of Licensed Vocational Nurse services, and compliance with all Federal and State policy and regulations. The contractor shall adhere to all standards and regulations associated with the Joint Commission on Accreditation of Healthcare Organizations (JCAHO) and American Correctional Association Foundation/Core Standards for Adult Correctional Institutions. The contractor's performance shall be monitored by the Contracting Officer's Representative (COR). The contractor must have the ability to work with an inmate population from a variety of cultural, regional, racial and ethnic backgrounds.

The contractor shall be responsible for, but is not limited to:

- Provide direct patient care services in accordance with legal, ethical, and institutional standards through the evaluation of patients and therapeutic treatment as ordered by Health Services clinical staff.
- Perform nursing duties within the scope of the current licensure.
- Administer medications as prescribed i.e., by mouth, intradermally, subcutaneously, or intramuscular ly.
- Assist with distribution of medications at pill line.
- Monitor and evaluate the response to therapy.
- Perform skin testing.
- Perform venipuncture for the purpose of obtaining laboratory specimens.
- Record and document patient care activities on appropriate records such as health history.
- Record diagnostic testing, i.e., venipuncture for laboratory studies, visual acuity testing, EKGs (per instructions from mid-level practitioners or physicians).
- Process lab work to include filing on a daily basis.
- Maintain accurate logs of all reports in accordance with Bureau of Prisons and JACHO policy Screen laboratory tests/results for normal/abnormal lad values and notify the physician or physicians.
- Ensure all sharps are secured, accounted for, stored and disposed of according to institutional and national policy.
- Assist the mid-level practitioners and physicians in the management and oversight of chronic care clinics.
- Review clinical records to ensure data is entered legibly and in the appropriate section of the medical record.
- Possess knowledge of treatment of chronic health problems, i.e., hypertension, diabetes, and asthma.
- Initiate emergency care as needed according to community standards.
- Maintain patient privacy and confidentiality.
- Adhere to infection control policies and procedures.
- Ability and skill to operate EKG and laboratory equipment.
- Knowledge of mental health disorders and must have the ability to screen for gross mood changes.
- Ability to provide basic first aid, prevention care, and guidance in treating a variety of common illnesses/injuries.
- Perform duties as required, but accept only those nursing assignments that are commensurate with his/ her educational preparation, training, experience, and nursing licensure laws.

Attire

The contractor is expected to navy blue scrubs or professional attire (scrubs preferred). The attire worn shall also be appropriate for the correctional environment in which the BPA employee will be performing.

Patient Management

The contractor will be responsible for receiving patients and explaining procedures to alleviate undue anxiety, submitting reports and evaluations as requested. The contractor will be responsible for following directives and comply with Bureau of Prisons Health Services Manual, local institutional mandates, and the Health Services Department's policies in the management of all patient encounters.

Patients shall be afforded impartial access to treatment or accommodations that are available or medically indicated, regardless of race, creed, sex, national origin, or religion. Staffing shall be commensurate with the expected needs of the patients and within the scope of services offered. The contractor shall NOT provide information to the inmates(s). If the situation arises where inmate(s) are required to be provided information, the Clinical Director, Health Services Administrator (HSA), or COR shall provide any information the inmate(s) are to receive. The contractor is required to maintain an open line of communication with the Clinical Director, HSA, and COR.

Inmate Management

Provision of services will require frequent and unsupervised contact with inmates. The contract employee shall not be responsible for the management of any inmates, other than to ensure inmates involved within the contract's scope of work abide by all rules to ensure their safety and well-being. The successful contractor shall attend the Institution Familiarization Orientation program prior to assuming institution involvement. Reimbursement to the contractor for the time spent in the institution orientation or other specific security related training will be at the contract rate, prorated hourly. The contractor may, at any time, be removed from the institution at the discretion of the CEO. The contractor is to constantly be aware of security and maintain a professional relationship with inmates at all times. Any violation of the institution rules and regulations are to be brought immediately to the attention of any Government employee employed at the institution. The contractor will be required to provide documentation to the COR, or designee, of any infractions of institutional rules and regulations by inmates for proper action.

Institution Security

The contractor/contract employees shall agree to all regulations prescribed by the institution for the safety, custody, and conduct of inmates. The contract employee will be required to operate a system of records as identified for medical treatment documentation, and will require adherence to the Privacy Act of 1974. The contract employee will be required to sign in and out of the institution for accountability purposes. A badge will be issued and worn at all times for proper identification.

Non-Personal Services/Common Law Employee Information

The service is a contractual arrangement and not a personnel appointment. Payment is based on the provision of an end product or the accomplishment of a specific result. The service does not constitute an employer/empl oyee relationship. The contractor will not be subject to Government supervision, except for security related matters. However, contractor performance shall be monitored.

If the resulting contract is made to an individual(s), the provision of these services has been determined to meet certain criteria for creating common law employee relationship. Therefore, the BOP is responsible for the payment of FICA taxes (7.65%) and the withholding of the individual's taxes. These responsibilities apply only when award of this solicitation is made to an individual. It does not apply to companies or individuals who are incorporated. For evaluation purposes, an additional 7.65% will be added to the price submitted by individuals who are not incorporated.

Two (2) Each Dental Assistant Services:

The Federal Bureau of Prisons intends to establish a Blanket Purchase Agreement (BPA) for the provision services by (2) dental assistants. Services are to be performed at the Federal Correctional Institution, (FCI) Herlong, located in Herlong, CA.

Schedule
The contractor will normally work Monday through Friday (except Federal holidays), normally between the hours of 6:30 am – 3:00 pm, with a 30-minute unpaid lunch period for each. A session will equal to one (1) hour for each Dental Assistant. The facility is expected to require an average of 8 sessions per day (16 total). The Dental Assistant's schedule shall not exceed 40 hours per week per individual. The actual hours of work will be determined by the Health Services Administrator.

Due to the nature of the correctional setting, delays in performance of work may be experienced. Such delays may include but are not limited to inclement weather, electrical or mechanical problems, or other security matters. When BPA employees report to the institution but are unable to perform services due to such delays, the contractor will be paid for one session. Normally, any remaining sessions for that day will be suspended and the contractor will be free to leave and the contractor will not be paid for the remaining unperformed sessions. However, if the institution requests that the contractor remain at the institution for eventual performance, the contractor shall be paid for such sessions. In the event of any absence, the contractor may make up his/her time providing it does not exceed 40 hours in any given week. If the contractor fails to provide coverage, the Government may seek contractual remedy.

Education and Experience
The Dental Assistant shall possess specialty training from a licensed dentist and/or certification from an accredited Dental Assistant school. Training must include dental radiology and radiology safety. The Dental Assistant shall be certified in Cardio-Pulmonary Resuscitation (CPR) in accordance with the American Red Cross or the American Heart Association and have a minimum of two (2) years of experience providing Dental Assistant services. Bilingual oral communication skills and experience in a clinical correctional setting are desirable.

The contractor must specifically identify the individual that will be performing these services along with their quote. The candidate's name and documents supporting their qualifications must accompany their quote (resume, photocopies of certificates and etc.)

Health Requirements
The contractor shall ensure the Dental Assistant is free of infectious diseases. Any individual performing as a Dental Assistant under this BPA who subsequently develops a medical condition which might reasonably be expected to place other workers, patients, or the public at risk shall be immediately removed from activities requiring performance of invasive procedures and activities which might reasonably be expected to place other workers, patients, or the public at risk. In any such case, the contractor(s) shall be responsible, at no additional cost to the institution, for securing the services of any replacement personnel required to perform this BPA.

Description of Duties
All duties shall be performed in accordance with standards and methods generally accepted within the field of Dental Assistant Services, and compliance with all Federal and State policy and regulations. The contractor shall adhere to all standards and regulations associated with the Joint Commission (JC) and American Correctional Association Foundation/Core Standards for Adult Correctional Institutions. The contractor's performance shall be monitored by the Contracting Officer's Representative (COR). The contractor must be able to work with an inmate population from a variety of cultural, regional, racial and ethnic backgrounds.

The Dental Assistant must possess the ability to collect and track data and enter data into the agency's electronic system and track scheduling of patient care and must have knowledge and experience in maintaining patient medical records and confidentiality.

The contractor is responsible for provision of the services as listed:

- Assists Dental Officer in dental specialty sections: restorative, oral surgery, periodontics, prosthetics, and examinations.
- Retrieve patient's records and escorts patients to proper dental specialty section; seats and prepares patient for attending Dental Officer
- Assists Dental Officer by preparing dental instruments, essential materials, drugs, and medications
- Passes instruments, retracts tissues, irrigates oral cavity, and operates aspirator
- Observes patient's responses, and assists patient for dismissal from the Dental Clinic
- Gives instructions for subsequent dental appointments
- Makes necessary entries on dental treatment records (both electronic and paper records)
- Prepares dental treatment room for the next patient
- Assists in the treatment of emergency cases.
- Provides dental health education
- Dental prophylaxis (RDA only)
- Dental screening examination
- Preparation of patients for periodontal surgery
- Dental and periodontal charting
- Prepares places, and removes packs
- Places temporary fillings (RDA only)
- Places and removes rubber dams
- Maintains dental equipment
- Cleans, sharpens, and sterilizes instruments
- Performs daily inspection of equipment and makes minor repairs
- Reports defective equipment, or utilizes corrective action
- Prepares entries for patient's records
- Selects and applies medication in proper portion and anti-cariogenic agents to surface of teeth Applies medication prescribed by a Dental Officer to gingiva to promote healing
- Performs procedures pursuant to fabrication and repair of complete denture prosthesis and removable partial prosthesis
- Takes radiographs of patients using standard and digital dental radiographic, panelipse, cephalometric, and transcranial equipment
- Obtains diagnostic quality periapical, occlusal, lateral, jaw, TMJ, and panographic radiographs
- Correctly positions patient and film
- Determines level of radiation intensity to minimize radiation exposure of patients
- Processes and saves digital radiographs to patient medical records
- Performs quality assurances on radiographic and developing equipment and safelight
- Maintains proper infection control procedures in radiographic techniques
- Sterilizes contaminated biological waste of dental clinic
- Make primary impressions and pours casts
- Selects tooth shade for composite restorations and dentures

Specific directions related primarily to unusual treatment concerning emergency professional therapy are given by the attending dentist who explains changes in professional dental procedures that are available to resolve such problems, and render advice as needed. Guidelines consist of applicable professional practices and specific written and oral instructions.

Patient Management

The contractor will be responsible for receiving patients and explaining procedures to alleviate undue anxiety, submitting reports and evaluations as requested. The contractor will be responsible for following directives and comply with Bureau of Prisons Health Services Manual, local institutional mandates, and the Health Services Department's policies in the management of all patient encounters.

Patients shall be afforded impartial access to treatment or accommodations that are available or medically indicated, regardless of race, creed, sex, national origin, or religion. Staffing shall be commensurate with the expected needs of the patients and within the scope of services offered. The contractor shall NOT provide information to the inmates(s). If the situation arises where inmate(s) are required to be provided information, the Clinical Director, Health Services Administrator (HSA), or COR shall provide any information the inmate(s) are to receive. The contractor is required to maintain an open line of communication with the Clinical Director, HSA, and COR.

Attire

The contractor is expected to navy blue scrubs or professional attire (scrubs preferred). The attire worn shall also be appropriate for the correctional environment in which the BPA employee will be performing.

Inmate Management

Provision of services will require frequent and unsupervised contact with inmates. The BPA employee shall not be responsible for the management of any inmates, other than to ensure inmates involved within the BPA's scope of work abide by all rules to ensure their safety and well-being. The successful contractor shall attend the Institution Familiarization Orientation program prior to assuming institution involvement. Reimbursement to the contractor for the time spent in the institution orientation or other specific security related training will be at the BPA rate, prorated hourly. The contractor may, at any time, be removed from the institution at the discretion of the CEO. The contractor is to constantly be aware of security and maintain a professional relationship with inmates at all times. Any violation of the institution rules and regulations are to be brought immediately to the attention of any Government employee employed at the institution. The contractor will be required to provide documentation to the COR, or designee, of any infractions of institutional rules and regulations by inmates for proper action.

Institution Security

The contractor/BPA employees shall agree to all regulations prescribed by the institution for the safety, custody, and conduct of inmates. The BPA employee will be required to operate a system of records as identified for medical treatment documentation, and will require adherence to the Privacy Act of 1974. The BPA employee will be required to sign in and out of the institution for accountability purposes. A badge will be issued and worn at all times for proper identification.

Non-Personal Services/Common Law Employee Information

The service is a contractual arrangement and not a personnel appointment. Payment is based on the provision of an end product or the accomplishment of a specific result. The service does not constitute an employer/employee relationship. The contractor will not be subject to Government supervision, except for security related matters. However, contractor performance shall be monitored. If the resulting BPA is made to an individual(s), the provision of these services has been determined to meet certain criteria for creating common law employee relationship. Therefore, the BOP is responsible for the payment of FICA taxes (7.65%) and the withholding of the individual's taxes. These responsibilities apply only when award of this solicitation is made to an individual. It does not apply to companies or individuals who are incorporated. For evaluation purposes, an additional 7.65% will be added to the price submitted by individuals who are not incorporated.

Section D - Packaging and Marking

This Section Is Intentionally Left Blank

Section E - Inspection and Acceptance

This Section Is Intentionally Left Blank

Section F - Deliveries and Performance

This Section Is Intentionally Left Blank

Section G - Contract Administration Data

Clauses By Reference

52.252-2 CLAUSES INCORPORATED BY REFERENCE (FEB 1998)		
This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es): www.acquisition.gov		
Clause	Title	Fill-ins (if applicable)
2852.201-70	Contracting Officer's Representative (COR) (NOV 2020)	COR Name: "Ms. Melissa Ackley" Org: "FCI Herlong" Address: "741-925 Herlong Access Rd A-25, Herlong, CA 96113" Phone: "TBD" Contract: "TBD" Period: "TBD"

Clauses By Full Text

Tailoring: Contract Administration Data

Clause Text

The Bureau of Prisons, Field Acquisition Office, intends to establish a Blanket Purchase Agreement (BPA) against an existing Federal Supplyl Schedule (FSS) Contract for the provision of **Paramedic (1), Phlebotomist (1), Radiology Technician (1), Licensed Vocational Nurse (LVN) (1), and Dental Assistant (2) services**. These services will be rendered on-site for the inmate population at the **Federal Correctional Instituton (FCI) Herlong, located at 741-925 Herlong Access Rd, A-25, Herlong, CA 96113.** It is anticipated that the BPA award will be made around **October 2026**. General informantion about the facility is available at www.bopo.gov.

The Bureau of Prisons (BOP) seeks to establish a BPA for services, this not a contract. A resulting BPA will be subject to the terms and conditions regarding BPAs that are incorporated in the FSS contract. The BOP seeks quotes from the small business contractors holding contracts against Multiple Award Schedule Category with Source **621 I, No. 621-033, 621-046, 621-050, 621-032, and 621-038 – Professional and Allied Healthcare Staffing Servies – Dental Assistant, Certified Phlebotomy Technician, Radiologic Technician, EMT Paramedic, and Licensed Vocational Nurse. The North American Industrial Classification System (NAICS) Code for Temporary Help Services is 561320 which sets the small business size standard at $34 million.**

Note: If the duration of a contractor's FSS will not accommodate the entire duration of the Federal Bureau of Prisons BPA, the contractor may not be considered for award.

NOTE: This requirement will be solicited as a set-aside for the **small business sociao-economic group; certified Women Owned Small Business (WOSB)**. The FSS contract holder must have geographical coverage in the state of **California**, and carry FSS category **621I - and encompase the services previously noted. Furthermore the FSS contract holder must be registered in the System for Award Management (SAM) against NAICS Code 561320.**

There is no obligation for either party until a call is placed. If the contractor accepts the call, the Government will utilize the BPA price list. When a call is placed, the terms of the call must be in accordance witht he terms of the BPA itself (Clauses, Statment of Work, and Terms and Conditions) and the extent of obligation is only for what was ordered in each accepted call.

The BPA is anticipated to extend for a base performance period through twelve months and four additional one-year performance periods, and if need be an optional 6 month extension at the unilateral discretion of the Government. The quantity of service sessions required for each performance period is estimated to be no more **1,880 sessions for the Paramedic, Phlebotomy, Radiological Technician, and Licensed Vocational Services; 3,760 sessions for two (2) each Dental Assistant services**.

It is anticipated that the contractor will employ o**ne (1) Paramedic, one (1) Phlebotomist, one (1) Radiologic Technician,** and **two (2) Dental Assistants** to fulfill the requirement.

It is anticipated that a BPA award will be made in **September or October 2026** with a projected effective date of **October or November 01, 2026**.

Performance Periods:
Base Period: Effective Date of Award (EDOA) through 12 months from the EDOA;
Performance Period 1: 13 months from the EDOA through 24 months from the EDOA;
Performance Period 2: 25 months from the EDOA through 36 months from the EDOA;
Performance Period 3: 37 months from the EDOA through 48 months from the EDOA;
Performance Period 4: 49 months from the EDOA through 60 months from the EDOA.
Six Month Option To Extend Period: At the discretion of the Program Manager: Potentially 61 months from EDOA through 66 months from the EDOA.

Place of Performance: Services will be performed on-site in the Health Services Department at the **Federal Correctional Institution (FCI) Herlong**, located at **741-925 Herlong Access Rd, A-25, Herlong, CA 96113.**

Service Contract Labor Standards Wage Determination: The applicabile wage determination for this requirement is **WD 2015-5679, Revision No. 32 Dated 8/22/2026 - Lassen County**. The current revision of the wage determination is provided as an attachment for information purposes only.

Initiating BPA Performance: The contractor shall initiate performance under this BPA by submitting required documentation to initiate security clearance of potential candidate(s) no later than **3 calendar days** after the effective date of award of this BPA.

Contracting Officer Responsibility: Authority to negotiate changes in the terms, conditions, or amounts cited in this BPA is reserved to the Contracting Officer. This responsibility, after award, may be delegated to an Administrative Contracting Officer by the Contracting Officer by the Procuring Contracting Officer.

BPA Administration Office (CAO): The Contracting Office at the **FCI Herlong**, is assigned as the CAO for a resultant BPA. This assignment carries with it the authority to perform all normal BPA administration functions as listed in FAR 42.302(a), items 1 through 71; to the extent those functions apply to this BPA. This assignement also includes delegation of authority to perform functions specified in FAR 42.302(b), items 1 through 11.

Extent of Obligation: The government is obligated only to the extent of authorized purchases for services actually placed under this agreement via BPA Calls/Task Orders. The maximum order threshold (if applicable or identified) specified in the contracto's FSS contract will not be exceeded.

Reviews: The Contracting Officer or designee is authorized to review by on-site survey, review of records, or by any other reasonable manner, the quality of services rendered under this BPA. All records shal be subject to review by the Contracting Officer or other representative of the BOP.

Point of Acceptance: The point of acceptance for services is the **FCI Herlong**.

Authorized Odering Officials: BPA Calls/Task Orders may be issued by any properly warranted Bureau of Prisons (BOP) Contracting Officer, or ordering official located at the **FCI Herlong** with an appropriate certificate of appointment. BPA Calls/Task Orders may be issued by any of the follwoing methods; orally, facsimile, mail, or electronic commerce methods.

Delivery Tickets and Invoices

Each invoice shall bear the following:
--Name and address of the contractor
--Remit to address
--Invoice date and number
--BPA Number (**TBD**) and applicable order number
--Discount Terms (if applicable)
--Description, place, and quantity of **services** delivered
--Date any services were provided, and
--A total dollar amount of the invoice

The individual invoice will be paid once monthly. The period of discount if applicable, will commence on the final date of billing period or the date of the receipt of the invoices for all services accepted during the billing period, or whichever is later. An invoice will be considered received on the date it is received by the Financial Management Department. These invoices are to be submitted to the following address:

FCI Herlong
Attn: Financial Management
P.O. Box 900
Herlong, CA 96113
Business Office Email: HER-BusinessOffice-S@bop.gov

Prices paid for ordered services under this BPA agreement shall not exceed the prices set forth in the Schedule of Supplies/Services. Prices charged to the Government shall be equal to or lower than those charged to the Contractor's most favored customers for comparable quantities under similar terms and conditions, including any applicable prompt payment discounts. The contractor shall notify the CAO/ACO in writing of any existing price reductions that result in the FSS price(s) falling below the BPA price(s) for any services identified as a BPA Contract Line-Item Number (CLIN). Additionally, the Contractor may, at any time, offer temporary, one-time or intermittent price reductions for any item identified in this BPA.

Service Contracting Information: This service is a contractual arrangement and not a personnel appointment. Payment is based on the provison of an end product or the accomplishment of a specific task. The service does not constitute an employer/employee relationship. The contractor will not be subject to Government supervision, except for security related matters. However, contractor performance shall be monitored. The contractor shall attend all training required by the Bureau of Prisons for contract workers. The contractor will not be permitted to attend institution meetings, staff recalls or Government training sessions for institution staff.

Healthcare Provider Status: The resultant BPA is for a non-personal healthcare service provider. The contractor will be an independent contractor. The Government may evaluate the quality of professional and administrative services provided, but retains no control over the medical, professional aspects of services rendered. The contractor must indemnify the Government for any liability producing act of omission by the contractor, its employees and agents occurring during performance. The contractor must maintain medical liability insurance.

Medical Malpractice: Except as provided elsewhere in this BPA, the contractor shall provide and maintain medical malpractice and such other insurance during the period of this BPA.

If the contractor or physician who is providing services under this BPA has pending litigation or admistrative proceedings that may affect his/her license to practice medicine or standing as a fellow member in a professional organization, full disclosure shall be provided to the CM/COTR/COR and CO within five calendar days upon official notification.

If it is determined by the medical legal review that the standare of care has not been met or there is substantial evidence of negligence on the part of the Contractor or contract employee, regardless of the final judicial decision, the physician my lose his/her privileges to practive at the BOP.

Quality of Patient Care/Non-Discrimination: The professional service providers will provide Bureau patients under the terms of this BPA the same equal services to those provided to non-Bureau patients. Professional service providers shall be provided within accepted professional standards.

The contractor agrees to make no distinction among patients under this BPA on the basis of race, color, creed, national origin, or physical condition. For this BPA, distinctions on the grounds or race, color, creed, national origin, or physical condition include but are not limited to the following: denying any service or benefit; providing any service or benefits to a patient which is different; or if provided in a different manner or at a different time from that provided to other patients under this BPA; subjecting a patient to segregation or separate treatment in any manner related to his receipt of any service; restricting a patient in any way in the enjoyment of an advantage or privilege enjoyed by others in determing whether he satisfies any admission, enrollment quota, eligibility, membership or other requirement or condition which an individual must meet in order to be provided any service or benefit; the assignment of time or places for the provision of services on the basis of race, color, creed, or national origin of the patients served.

Third Party Liability: Public Law 87-693 (42 U.S.C. 2651) provides that the United States shall be entiled to recover the reasonable value of hospital and medical care and treatment furnished or to be furnished to a person who suffers any injury or disease under circumstances indicating the potentionl legal liability of another person. This other person is commonly referred to as the "third party" since his/her negligent act or failure to act caused an injury or disease to the "first party" requiring medical treatment by or at the expense of the United States, the "second party".

Health Care Provider Credential Verification, Privileges, and Practice Agreement Program: Health care service employees are subject to Program Statement 6021.02, Health Care Provider Credential Verification, Privileges, and Practice Agreement Program, dated 10/12/2016. This program statement is available at www.bop.gov.
Security and Investigative Requirements: The employees of the contractor entering the institution may be required to meet certain security requirements prior to entering the institution. Primary concerns are the amount of contact that may occur between the contractor and his/her employees with the inmate population during the perfomance of the BPA. Contract employees are allowed access to the institution at the sole discretion of the CEO of the institution.

Privacy Act Notification: The BPA will require contracted staff to operate a system of records and maintain documentation that will require adherence to the Privacy Act of 1974. The system of records will be maintained in accordance with community standards for adult health care. The contractor and/or staff are not authorized to disclose this or any information pertaining to an inmate to any non-Bureau source. Any request for such information shall be forwarded to the Contracting Officer or COR for proper disposition.

Security and Investigative Requirements: The employees of the contractor entering the institution may be required to meet certain security requirements prior to entering the institution. Primary concerns are the amount of contact that may occur between the contractor and his/her employees witht he inmate population during the performance of the BPA. Contract employees are allowed access to the institution at the sole discrection of the CEO of the institution.

The Program Manager at **FCI Herlong** is responsible for conducting the appropriate law enforcement check on all contractor staff that may need access inside the prison facility. The following investigative procedure will be performed:

(1) National Crime Information Center (NCIC) check;
(2) Declaration of Federal Employment (OF-306);
(3) FD-258 (fingerprint check);
(4) Law Enforcement Agency checks;
(5) Vouchering of Employers;
(6) Employment Resume;
(7) Completed Contractor Pre-employment Questionnaire;
(8) Release of Information;
(9) Questionnaire for Sensitive Positions;
(10) Credit Check, if applicable;
(11) Urinalysis, if applicable.

Quoters should also note that clause DOJ-03, Personal Security Requirements for Contractor Employees (Nov 2021) requires that contractor personnel have a "favorable credit report." **Quoters are strongly encouraged to pre-screen potential candidates for credit issues before submitting the candidate to FCI Herlong.**

By submitting a quote for service, the contractor and its employees agree to complete the required documents and undergo the listed procedures. An individual who does not pass the security clearance will be unable to enter the Bureau facility. Any individual employed by the contractor who is deemed not suitable by the Bureau requirements will not be granted access to perform services under the BPA. This is a condition of the BPA. Finally, the contractor shall be in compliance with 8 CFR 274a regarding employment of aliens.

Section H - Special Contract Requirements

Clauses By Reference

52.252-2 CLAUSES INCORPORATED BY REFERENCE (FEB 1998)		
This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es): www.acquisition.gov		
Clause	Title	Fill-ins (if applicable)
2852.222-70	Domestic Violence, Sexual Assault, and Stalking (DEC 2014)	
2852.223-70	Unsafe Conditions Due to the Presence of Hazardous Material (NOV 2020)	

Clauses By Full Text

DOJ-05 Security of Department Information and Systems (APR 2026)

I. Applicability to Contractors and Subcontractors

Section 2839.102 of the Justice Acquisition Regulation (JAR), (48 C.F.R. § 2839.102), applies to this contract. Accordingly, all contractors are obligated to comply with all applicable DOJ security policies, directives, or guidance documents, including the security requirements in the provisions in this contract clause. This contract clause applies to all contractors and subcontractors, including cloud service providers ("CSPs"), and personnel of the contractors and subcontractors (hereinafter collectively, "Contractor") that may access, collect, store, process, maintain, use, share, retrieve, disseminate, transmit, or dispose of DOJ Information. The security requirements set forth herein are in addition to those required by the Federal Acquisition Regulation ("FAR"), and any other applicable laws, mandates, contract clauses, DOJ policies, directives or guidance documents and Executive Orders pertaining to the development and operation of Information Systems and/or the protection of Government Information. This clause does not alter or diminish any existing rights, obligations, or liability under any other civil and/or criminal law, rule, regulation, or mandate.

II. General Definitions

The following general definitions apply to this clause. Specific definitions also apply as set forth in other paragraphs.

A. **Authorization to Operate** ("ATO"), as defined in National Institute of Standards and Technology ("NIST") Special Publication ("SP") 800-37 Revision 2, is the official management decision given by a senior Federal official or officials to authorize operation of an information system and to explicitly accept the risk to agency operations (including mission, functions, image, or reputation), agency assets, individuals, other organizations, and the Nation based on the implementation of an agreed-upon set of security and privacy controls.

B. **Cloud Computing**, as defined in DOJ Order 0904 Cybersecurity Program, is a model for enabling ubiquitous, convenient, on-demand network access to a shared pool of configurable computing resources (e.g., networks, servers, storage, applications, and services) that can be rapidly provisioned and released with minimal management effort or service provider interaction. This cloud model is composed of five essential characteristics, three service models, and four deployment models in accordance with NIST SP 800-145.

C. **Covered Contract** is any contract, order or other agreement under which the contractor, or a subcontractor at any tier, including a cloud service provider, may access, collect, store, process, maintain, use, share, retrieve,

disseminate, transmit, or dispose of DOJ Information (as defined below) in the course of providing a product or service to the Department, with the exception of acquisitions under the micro-purchase threshold.

D. **Covered Information System** means any information system used for, involved with, or allowing, the processing, storing, or transmitting of DOJ Information under a Covered Contract.

E. **Data** means recorded information, regardless of form or the media on which it may be recorded. The term includes technical data, computer software, and personally identifiable information (PII) (defined below). The term does not include information incidental to contract administration, such as financial, administrative, cost or pricing, or management information.

F. **DOJ Information**, as defined in DOJ Order 0904, means any Information that is owned, produced, controlled, protected by, or otherwise within the custody or responsibility of the DOJ, including, without limitation, information related to DOJ programs or personnel. It includes, without limitation, Information (1) provided by or generated for the DOJ, (2) managed or acquired by the Contractor for the DOJ in connection with the performance of the contract, and/or (3) acquired to perform the contract.

G. **Information**, as defined in DOJ Order 0904, is any communication or representation of knowledge such as facts, data, or opinions, in any form or medium, including textual, numerical, graphic, cartographic, narrative, or audiovisual. This includes any communication or representation of knowledge in an electronic format that allows it to be stored, retrieved, or transmitted.

H. **Information System**, means a discrete set of information resources organized for the collection, processing, maintenance, use, sharing, dissemination, or disposition of information (44 U.S.C. 3502(8)).

I. **Personally Identifiable Information** (“PII”), as defined in the FAR 24.101, means information that can be used to distinguish or trace an individual's identity, either alone or when combined with other information that is linked or linkable to a specific individual. It includes but is not limited to common data elements such as names, addresses, dates of birth, and places of employment, to identity documents, Social Security numbers or other government-issued identifiers, precise location information, medical history, and biometric records. This definition covers all PII that is created by or becomes available to the contractor, including its employees, subcontractors, or affiliates, as a result of performing under this contract. PII, as supplementally defined in DOJ Order 0904, also includes information about an individual maintained by an agency, including, but not limited to, information related to education, financial transactions, medical history, and criminal or employment history and information, which can be used to distinguish or trace an individual’s identity.

J. **Private Cloud**, as defined in NIST SP 800-145, is the deployment model for cloud infrastructure provisioned for exclusive use by a single organization comprising multiple consumers (e.g., business units). It may be owned, managed, and operated by the organization, a third party, or some combination of them, and it may exist on or off premises.

K. **Security Breach** means any security incident (as defined below) that directly relates to the loss of control, compromise, exfiltration, manipulation, unauthorized disclosure, unauthorized acquisition, unauthorized exposure or unauthorized access or any similar occurrence of any Covered Information System or any DOJ Information or any PII accessed by, retrievable from, processed by, stored on, or transmitted within, to or from any such system. This includes incidents where (1) a person other than an authorized user accesses or potentially accesses PII or DOJ Information or (2) an authorized user accesses or potentially accesses PII or DOJ Information for an unauthorized purpose.

a. **Potential Security Breach** (hereinafter, “Potential Breach”) means any suspected, but unconfirmed security breach (as defined above).
b. **Confirmed Security Breach** (hereinafter, “Confirmed Breach”) means any confirmed security breach (as defined above).

L. **Security Incident** means any occurrence that (1) may actually or imminently jeopardize, without lawful authority, the availability, integrity, authentication, confidentiality, or nonrepudiation of DOJ Information or a Covered Information System; or (2) may constitute a violation or imminent threat of violation of law, security policies, security procedures, or acceptable use policies.

a. **Potential Security Incident** means any suspected, but unconfirmed security incident (as defined above).
b. **Confirmed Security Incident** means any confirmed security incident (as defined above).

M. **Vulnerability**, as defined in DOJ Vulnerability Management Plan, and the OCIO Information Security Management Procedure, means a weakness or flaw discovered in the design of a system that, when exploited, may result in a loss of confidentially, integrity, or availability of DOJ Information or an Information System.

III. Confidentiality and Non-Disclosure of DOJ Information

A. Preliminary and final contract deliverables and all associated working papers and material generated by the Contractor developed using DOJ Information, product, source code, and/or methods of operations, are the property of the U.S. Government and must be submitted to the Contracting Officer ("CO") or the CO's Representative ("COR") at the conclusion of the contract. The U.S. Government has unlimited data rights to all such deliverables and associated working papers and materials in accordance with FAR 52.227-14 (Rights in Data-General). The Contractor will define a method of monitoring the development activity to include any activity associated with DOJ Information, product, source code, and methods of operations. The data rights and development details shall be defined within the Contract.

If the Contractor intends to utilize its existing data, for which it has a patent or copyright, to develop a contract deliverable, it is incumbent upon the Contractor to negotiate with the CO the proper FAR Part 27 clauses in the contract to protect its existing data.

B. Pursuant to FAR 52.227-14(d)(2), all documents and data produced in the performance of this contract containing DOJ Information, product code, source code, and/or methods of operations are the property of the U.S. Government and, without the prior written permission of the CO, the Contractor shall neither reproduce nor release such information to any third-party at any time, including during performance or following expiration and/or termination of the contract.

C. Any DOJ Information made available to the Contractor under this contract shall be used only for the purpose of performance of this contract and shall not be divulged or made known in any manner to any persons except as may be necessary in the performance of this contract. In performance of this contract, the Contractor assumes responsibility for the protection of the confidentiality of all DOJ Information processed, stored, or transmitted by the Contractor. The Contractor shall comply with information security responsibilities and duties throughout the contract and after expiration/ termination as appropriate per contract close-out activities. When requested by the CO (typically no more than annually), the Contractor shall provide a report to the CO identifying, to the best of the Contractor's knowledge and belief, the type, amount, and level of sensitivity of the DOJ Information processed, stored, or transmitted under the Contract, including an estimate of the number of individuals for whom PII has been processed, stored or transmitted under the Contract and whether such information includes social security numbers (in whole or in part).

IV. Compliance with Information Technology Security Policies, Procedures and Requirements

A. For all Covered Information Systems, in addition to any other applicable requirements, as set forth in Part I, the Contractor shall comply with the security requirements of the Federal Information Security Modernization Act of 2014 ("FISMA"), Privacy Act of 1974, E-Government Act of 2002, National Institute of Standards and Technology ("NIST") Special Publications ("SP"), including NIST SP 800-37, 800-53, and 800-60 Volumes I and II, Federal Information Processing Standards ("FIPS") Publications 140-2, 199, and 200, Federal Risk and Authorization Management Program ("FedRAMP"), DOJ IT Security Standards as amended, and OMB Memoranda relating to the security of information and/ or Federal Information Systems.

B. In addition, for all Covered Information Systems, the Contractor shall comply with the following requirements, which are listed here only to highlight certain specific applicable requirements from one of the sources identified in the first paragraph of this Section. This is not an exhaustive list of all such requirements with which the Contractor is obligated to comply, and the omission of a requirement from this list should not be construed as negating the materiality of that requirement. These requirements and those in the authorities in the prior paragraph should be read together.

1. Limiting access to DOJ Information and Covered Information Systems to authorized users and to transactions and functions that authorized users are permitted to exercise.
2. Providing security awareness training at least annually to all Contractor employees and contractors involved with the Covered Contract. Such training shall include, but not be limited to, recognizing and reporting potential indicators of insider threats to users and managers of DOJ Information and Covered Information Systems.
3. Creating, protecting, and retaining, in accordance with applicable requirements but in any event at least until the expiration of the contract, Covered Information System audit records, reports, and supporting documentation to enable reviewing, monitoring, analysis, investigation, reconstruction, and reporting of unlawful, unauthorized, or inappropriate activity related to such Covered Information Systems and/or DOJ Information.
4. Maintaining authorizations to operate any Covered Information System.
5. Performing continuous monitoring on all Covered Information Systems, to include but not be limited to, collecting, reviewing, and analyzing appropriate logs and timely investigating security alerts and potential security incidents.

6. Establishing and maintaining baseline configurations and current inventories of Covered Information Systems, including hardware, software, firmware, and documentation, throughout the Information System Development Lifecycle, and establishing and enforcing security configuration settings for IT products employed in Covered Information Systems.
7. Ensuring appropriate contingency planning has been performed, including DOJ Information and Covered Information System backups.
8. Identifying Covered Information System users, processes acting on behalf of users, or devices, and authenticating and verifying the identities of such users, processes, or devices, using multifactor authentication or HSPD-12 compliant authentication methods as defined by NIST 800-63-3, Digital Identity Guidelines or current revision.
9. Establishing and maintaining an operational incident handling capability for Covered Information Systems that includes adequate and timely development, logging, detection, analysis, containment, recovery, and user response activities, and tracking, documenting, and timely reporting incidents to appropriate officials and authorities within the Contractor's organization and the DOJ.
10. Performing periodic and timely maintenance on Covered Information Systems, and providing effective controls on tools, techniques, mechanisms, and personnel used to conduct such maintenance.
11. Protecting Covered Information System media containing DOJ Information, including paper, digital and electronic media, and DOJ assets under Contractor control; protecting them from environmental impacts, access, and equipment positioning requirements defined; limiting access to DOJ Information to authorized users; and sanitizing or destroying Covered Information System media containing DOJ Information before disposal, release or reuse of such media.
12. Limiting physical access to Covered Information Systems, equipment, and physical facilities housing such Covered Information Systems to authorized personnel according to DOJ 03.
13. Screening individuals prior to authorizing access to Covered Information Systems to ensure compliance with DOJ Security standards including personnel background checks.
14. Continuously assessing the risk to DOJ Information in Covered Information Systems, including scanning and remediating vulnerabilities, or implementing appropriate mitigation in accordance with DOJ policy, and ensuring the timely removal of assets no longer supported by the Contractor.
15. Continuously monitoring the application of security controls of Covered Information Systems, assessing the efficacy of such controls, and developing and implementing plans of action designed to correct deficiencies and eliminate or reduce vulnerabilities in such Covered Information Systems.
16. Monitoring, controlling, and protecting information transmitted or received by Covered Information Systems at the external boundaries and key internal boundaries of such Covered Information Systems, and employing architectural designs, software development techniques, and systems engineering principles that promote effective security.
17. Identifying, reporting, and correcting Covered Information System security flaws in a timely manner, providing protection from malicious code at appropriate locations, monitoring security alerts and advisories and taking appropriate and timely action in response.
18. Ensuring return of Government Furnished Equipment ("GFE") and/or PIV card assets within 10 business days of notification for end of use (contract end, staff change, etc.).
19. Complying with rights in data (FAR 52.227-14) as to the development, management, and protection of DOJ Information.
20. Reporting on risks or known issues impacting DOJ Services (staffing, hardware, process, changes, etc.) through the Contractor's CO or COR, DOJ Service Owner ("SO"), and Government Technical Manager ("GTM") including risk mitigation activities.
21. Reporting through the Contractor's CO or COR on any projected or planned changes in corporate ownership, covered information system design, and/or any technical changes that could impact the confidentiality, integrity or availability of DOJ Information, data, or systems. Changes to system design must be updated through the authorization process per NIST SP 800-37 Revision 2, Step 6 ('Continuous Monitoring") or current NIST revision.
22. When, as part of operating within the DOJ environment, the Contractor's covered information system is subject to review, audit, or assessment by third parties, facilitating DOJ access to information system resources, facilities, personnel, and documentation in a timely manner as required by the auditors. Should a third-party organization conduct a review of any Covered Information System, the Contractor must provide a copy of the report to DOJ, through the CO and COR.
23. To enhance software supply chain and transparency, upon request, the Contractor shall provide a current Software Bill of Materials (SBOM) for all software, software updates, modules, libraries, and container images delivered or operated in the performance of this contract, consistent with applicable federal policy such as the National Telecommunications and Information (NTIA)-established minimum elements for SBOM to the CO who

will refer to the DOJ Cyber-Security Risk Management team (C-SCRM) [Authority: OMB M-26-05; EO 14028/ NTIA minimum requirements].

24. Reporting on outages impacting DOJ Services through the Contractor's CO, COR, and DOJ Service Owner (SO) to include event and mitigation details.

C. The Contractor shall not process, store, or transmit DOJ Information using a Covered Information System without first obtaining an ATO for each Covered Information System. The ATO shall be signed by the Authorizing Official for the DOJ component responsible for maintaining the security, confidentiality, integrity, and availability of the DOJ Information under this contract. (For Cloud Computing Systems, see Section V, below.)

D. The Contractor shall ensure compliance with DOJ-03 (Personnel Security Requirements for Contractor Employees) as to all Covered Information Systems.

E. When requested by the DOJ CO or COR as described below, the Contractor shall provide DOJ, including the Office of Inspector General ("OIG") and Federal law enforcement components, (1) access to any and all information and records, including electronic information, regarding a Covered Information System, and (2) physical access to the Contractor's facilities, installations, systems, operations, documents, records, and databases. Such access may include independent validation testing of controls, system penetration testing, and FISMA data reviews by DOJ or agents acting on behalf of DOJ, and such access shall be provided within 72 hours of the request. Additionally, the Contractor shall cooperate with DOJ's efforts to ensure, maintain, and safeguard the security, confidentiality, integrity, and availability of DOJ Information.

F. The use of Contractor-owned laptops or other portable digital or electronic media to process or store DOJ Information covered by this clause or access a Covered Information System is prohibited unless the CO approves it in writing after the Contractor has provided a letter certifying compliance with the following requirements. For any requirements which include the use or storage of PII, the Senior Component Official for Privacy must also approve. Any additional requirements set forth for the use or storage of PII under DOJ-02, Contractor Privacy Requirements, are in addition to, not superseded by, the requirements set forth here.

1. Media must be encrypted using a NIST FIPS 140-2 approved product.
2. The Contractor must develop and implement a process to ensure that security and other applications software is kept up to date.
3. Where applicable, media must utilize antivirus software and a host-based firewall mechanism.
4. The Contractor must log all computer-readable data extracts from databases holding DOJ Information and verify that each extract including such data has been erased within 90 days of extraction or that its use is still required. All DOJ Information should be treated by the Contractor as sensitive information unless specifically designated as non-sensitive by the DOJ.
5. A Rules of Behavior (ROB) form must be signed and acknowledged annually by users. These rules must address, at a minimum, authorized, and official use, prohibition against unauthorized users and use, and the protection of DOJ Information. The form also must notify the users that they have no reasonable expectation of privacy regarding any communications transmitted through or data stored on Contractor-owned laptops or other portable digital or electronic media.
6. Cybersecurity Awareness Training (CSAT) shall be provided annually by Contractor for all users of Covered Information System. This training must be submitted to, and approved by, the CO or COR in advance of being provided to users. Users must complete and acknowledge having received CSAT each year. At a minimum, CSAT provided by contractors must include:
    a. Insider Threat Detection and Reporting – Importance of detecting, methodologies, indicators, and reporting
    b. Privacy Awareness – Privacy Act and PII
    c. General Cybersecurity – Information security, trends in advance persistent threats, social engineering/phishing, appropriate use, mobile devices, remote access, basic security best practices

G. Contractors shall not store DOJ information on Contractor-owned removable IT (e.g., media such as a thumb drive or external hard drive) unless expressly authorized in writing by the DOJ CO or COR in the performance of their contract.

H. When no longer needed, all media must be processed (sanitized, degaussed, or destroyed) in accordance with NIST SP 800-88, Guidelines for Media Sanitization.

I. The Contractor must keep an accurate inventory of digital or electronic media used in the performance of DOJ contracts.

J. The Contractor must remove all DOJ Information from Contractor media and return all such information to the DOJ within 10 days of the expiration or termination of the contract, unless otherwise extended by the CO, or waived (in part or whole) by the CO, and all such information shall be returned in a format and form acceptable to DOJ. The Contractor shall provide a written certification certifying the removal and return of all such information to the CO within 10 business days of the removal and return of all DOJ Information.

K. DOJ, at its discretion, may suspend the Contractor's access to any DOJ Information, or terminate the contract, when DOJ suspects that the Contractor has failed to comply with any security requirement, or in the event of an Information System Security Incident or Security Breach (see definitions above), where the Department determines that either event gives cause for such action. The suspension of access to DOJ Information may last until such time as DOJ, in its sole discretion, determines that the situation giving rise to such action has been corrected or no longer exists. Any termination action taken because of the Contractor's suspected failure to comply with any security requirement will be conducted in accordance with the applicable termination clause governing the awarded contract. The Contractor understands that any suspension or termination in accordance with this provision shall be at no cost to DOJ, and that upon request by the CO, the Contractor must immediately return all DOJ Information to DOJ, as well as any media upon which DOJ Information resides, at the Contractor's expense. The Contractor must comply with FAR 52.227-14 (Rights in Data), FAR 52.245-1 (Government Property), DOJ 2400.3A Chapter 1 (component property procedures), and FAR 4.804-5(a)(6) (Procedures for closing out contract files).

V. Cloud Computing

A. The Contractor may not utilize the Cloud system of any Cloud Service Provider ("CSP") unless:

1. 1. All of the following has occurred: (a) the Cloud system and CSP have been evaluated by a Third Party Assessing Organization ("3PAO") certified under FedRAMP; (b) the Cloud system received FedRAMP authorization; (c) the Contractor has provided the most current System Security Plan ("SSP") and Security Assessment Report ("SAR") to the DOJ CO for consideration, and provides any subsequent SSPs and SARs within 30 days of issuance; and, (d) the Authorizing Official for the DOJ component responsible for maintaining the security confidentiality, integrity, and availability of the DOJ Information under the Covered Contract has issued an ATO; or,
   2. In cases where the CSP or its offering is not FedRAMP authorized, the COR approves utilization of the Cloud System after the CSP has worked with the authorizing official, the DOJ OCIO, and the FedRAMP Program Management Office to determine that the CSP is likely to seek and receive Agency/FedRAMP authorization within 1 year, or DOJ has authorized use as a Private Cloud or Contractor Owned, Contractor Operated system.

B. The Contractor must ensure that the CSP allows DOJ to access and retrieve any DOJ Information processed, stored, or transmitted in a Cloud system under this Contract within a reasonable time of any such request, but in no event less than 48 hours from the request. To ensure that the DOJ can fully and appropriately search and retrieve DOJ Information from the Cloud system, access shall include any schemas, meta-data, and other associated data artifacts.

C. The Contractor must ensure that the CSP provides access and information to support and enable DOJ's cloud security posture management, to include the current inventory of security management configuration data for services and information to confirm the Contractor has been monitoring accounts for compliance with security requirements. The DOJ Justice Security Operations Center (JSOC) must be able to access logs and events to investigate potential security breaches and perform security posture assessments associated with the Security Audit Identity Credential Access Management (ICAM) policies.

D. The Contractor must ensure that the CSP provides evidence of annual recertification of privileged user access management.

E. A C-SCRM review is mandatory for specified acquisitions in accordance with established process in EO 14028 and NIST SP 800-161, Cybersecurity Supply Chain Risk Management Practices for Systems and Organizations, or superseding document. All vendor products and solutions to be used on DOJ national security systems, enterprise-wide systems, or new FIPS-199 High and Moderate systems for the purpose of accessing, collecting, storing, processing, maintaining, using, sharing, retrieving, disseminating, transmitting, or disposing of DOJ Information must be submitted to DOJ OCIO for a C-SCRM review prior to contract award or ATO signature. Changes in corporate ownership or structure shall be reported to the CO for referral to C-SCRM. The Contractor shall notify the CO of any confirmed Supply Chain compromise affecting the Contractor's products or services within 1 hour of discovery.

__ The following C-SCRM requirements for acquisition of systems, hardware, or software which will be used in systems that are mission critical or process sensitive data apply to this award. **(CO check as appropriate in coordination with the Program Manager and/or System Owner)**

1. The Contractor shall develop and deliver a C-SCRM Plan. The C-SCRM Plan shall meet the format described in NIST SP 800-161, Appendix E. The C-SCRM plan shall address the following security controls from NIST SP 800-53 Rev 5: SR-2, SR-3, SR-4, SR-5, SR-6, SR-7, SR-8, SR-9, SR-10, and SR-11. Equivalent ISO 27000 series controls may be used if they are mapped to the NIST control(s).
2. The Contractor shall implement the required security controls as documented in the C-SCRM Plan. The requirements of the C-SCRM plan shall flow down to all subcontractors. Evidence of the certification and compliance is required.
3. For cloud platforms or managed services, upon request, the Contractor shall provide a current SBOM of the runtime production environment reflecting the software components and dependencies materially present in the service.
4. The Contractor shall provide evidence of compliance with the documented C-SCRM Plan. (CO select which applies)

__ Self-assessment by a contractor security team
__ External assessment by an independent auditor

VI. Information System Security Incident

A. Confirmed Security Incident. The Contractor shall immediately (and in no event later than 1 hour of discovery) report any Confirmed Security Incident to the DOJ CO and COR. If the Confirmed Security Incident occurs outside of regular business hours and/or neither the DOJ CO nor the COR can be reached, the Contractor must call JSOC at 1-202-357-7000 immediately (and in no event later than within 1 hour of discovery of the Confirmed Security Incident) and shall notify the CO and COR as soon as practicable.

B. Potential Security Incident.

1. If the Contractor suspects that DOJ information has been potentially disclosed or impacted, the Contractor shall promptly investigate to determine if a Security Incident has occurred. If the Contractor has not determined within 24 hours (i.e., 24 hours from detection of potential security incident and/or security breach) whether the Potential Security Incident was in fact a Security Incident, then it must immediately report the Potential Security Incident to the DOJ CO and the COR. If the time by which to report the Potential Security Incident occurs outside of regular business hours and/or neither the DOJ CO nor the COR can be reached, the Contractor must call or e-mail the JSOC Team at 1-202-357-7000 or JSOC@USDOJ.GOV and contact the DOJ CO and COR as soon as practicable. If the contract involves PII, the Contractor must comply with the notification requirements of DOJ-02 and Executive Order M-17-12 (Memorandum on Preparing for and Responding to a Breach of Personally Identifiable Information), Contractor Privacy Requirements, Section B.5, for an actual or suspected Security Incident.
2. The Contractor must limit sharing of Security Incident details to only those individuals involved in responding to the potential Security Incident. Any provisions of the Covered Contract regarding the citizenship or location of individuals working on the Covered Contract apply equally to individuals involved in responding to any potential Security Incidents. The Contractor may request assistance from the JSOC for advice, incident response, or FBI coordination. The Contractor must provide weekly updates to CO, COR and JSOC during the course of a Security Incident investigation.

C. Any report submitted in accordance with paragraphs (B) and (C), above, shall identify:

1. Both the Covered Information Systems and DOJ Information involved or at risk, including the type, amount, and level of sensitivity of the DOJ Information and, if the DOJ Information contains PII, the estimated number of unique instances of PII.
2. All steps and processes being undertaken by the Contractor to minimize, remedy, and/or investigate the Security Incident.
3. Any and all other information as required by the CISA Federal Incident Notification Guidelines, including the functional impact, information impact, impact to recoverability, threat vector, mitigation details, and all available incident details; and

The Contractor may request assistance from the JSOC Team for advice, incident response, or FBI coordination, and must provide weekly updates to CO, COR, and JSOC during the course of an Incident investigation.

D. Except as otherwise required by Federal, State and local laws, executive orders, rules and regulations, all determinations regarding whether and when to notify other individuals and/or federal agencies potentially affected by a Security Incident will be made by DOJ senior officials, the DOJ Core Management Team, or the COR at DOJ's discretion.

E. The Contractor must provide to DOJ full access to any facility and/or Covered Information System affected or potentially affected by any potential or confirmed Security Incident, including access by the DOJ OIG and federal law enforcement organizations, and undertake any and all response actions DOJ determines are required to ensure the protection of DOJ Information, including providing all requested images, log files, and event information to facilitate rapid resolution of any Security Incident.

F. DOJ, at its sole discretion, may obtain, and the Contractor will permit, the assistance of other federal agencies and/or third-party contractors or firms to aid in response activities related to any potential or confirmed Security Incident. Additionally, DOJ, at its sole discretion, may require the Contractor to retain, at the Contractor's expense, a 3PAO acceptable to DOJ, with expertise in incident response, compromise assessment, and federal security control requirements, to conduct a thorough vulnerability and security assessment of all affected Covered Information Systems.

G. Response activities related to any Security Incident undertaken by DOJ, including activities undertaken by the Contractor, other federal agencies, and any third-party contractors or firms at the request or direction of DOJ, may include inspections, investigations, forensic reviews, data analyses and processing, and final determinations of responsibility for the Security Incident and/or liability for any additional response activities. The Contractor shall be responsible for all costs and related resource allocations required for all such response activities related to any Security Incident, including the cost of any penetration testing.

VII. Pass-Through of Security Requirements to Subcontractors and CSPs

A. The requirements set forth in the preceding paragraphs of this clause apply to all subcontractors and CSPs who perform work in connection with the contract, including any CSP providing services for any other CSP under the contract, and the Contractor shall flow down this clause to all subcontractors and CSPs performing under this contract. Any breach by any subcontractor or CSP of any of the provisions set forth in this clause will be attributed to the Contractor.

(End of Clause)

DOJ-07 Prohibition On Access By Non-U.S. Citizens To DOJ IT Systems (MAR 2002)

The Department of Justice does not permit the use of Non-U.S. citizens in the performance of this contract or commitment for any position that involves access to or development of any DOJ IT system. By signing the contract or commitment document, the contractor agrees to this restriction. In those instances where other non-IT requirements contained in the contract or commitment can be met by using Non-U.S. citizens, those requirements shall be clearly described.

(End of Clause)

Section I - Contract Clauses

Clauses By Reference

52.252-2 CLAUSES INCORPORATED BY REFERENCE (FEB 1998)		
This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es): www.acquisition.gov		
Clause	Title	Fill-ins (if applicable)
52.203-17	Contractor Employee Whistleblower Rights (Nov 2023)	
52.204-13 (DEV)	System for Award Management-Maintenance (Oct 2018) (DEVIATION NOV 2025)	
52.209-10 (DEV)	Prohibition on Contracting With Inverted Domestic Corporations (Nov 2015) (DEVIATION NOV 2025)	
52.212-4 (DEV)	Terms and Conditions-Commercial Products and Commercial Services (Nov 2023) (DEVIATION NOV 2025)	
52.222-41 (DEV)	Service Contract Labor Standards (Aug 2018) (DEVIATION DEC 2025)	
52.222-43 (DEV)	Fair Labor Standards Act and Service Contract Labor Standards-Price Adjustment (Multiple Year and Option Contracts) (Aug 2018) (DEVIATION DEC 2025)	
52.222-90	Addressing DEI Discrimination by Federal Contractors (APR 2026)	
52.224-3	Privacy Training (Jan 2017)	
52.232-40	Providing Accelerated Payments to Small Business Subcontractors (Mar 2023)	
52.233-3 (DEV)	Protest after Award (Aug 1996) (DEVIATION NOV 2025)	
52.233-4 (DEV)	Applicable Law for Breach of Contract Claim (Oct 2004) (DEVIATION NOV 2025)	
52.240-91 (DEV)	Security Prohibitions and Exclusions (DEVIATION NOV 2025)	

Clause	Title	Fill-ins (if applicable)
2852.212-4	Contract Terms and Conditions, Commercial Items (FAR Deviation) (NOV 2020)	

Clauses By Full Text

BOP 2852.242-71 EVALUATION OF CONTRACTOR PERFORMANCE UTILIZING CPARS (APR 2011)

The services, although not directly supervised, shall be reviewed by Federal Bureau of Prisons (BOP) staff to ensure contract compliance. The contractor's performance will be evaluated in accordance with FAR 42.15. Contract monitoring reports will be prepared by the Contacting Officer's Representative (COR) and maintained in the contract file.

In accordance with FAR 42.1502 and 42.1503, agencies shall prepare an evaluation of contractor performance and submit it to the Past Performance Information Retrieval System (PPIRS). The BOP utilizes the Department of Defense (DOD) web-based Contractor Performance Assessment Reporting System (CPARS) to provide contractor performance evaluations. The contractor shall provide and maintain a current e-mail address throughout the life of the contract. The contractor will receive an e-mail from the Focal Point thru the following website addresswebptsmh@navy.milwhen the contract is registered in CPARS. The e-mail will contain a "user ID" and temporary password to register in the CPARS system. The contractor must be registered to access and review its evaluation and/or provide a response. If assistance is required when registering, please contact the Contracting Staff/Focal Point.

(End of Clause)

DOJ-01 Whistleblower Information Distribution (Oct 2021)

Within 30 days of contract award, the contractor and its subcontractors must distribute the “Whistleblower Information for Employees of DOJ Contractors, Subcontractors, Grantees, or Sub-Grantees or Personal Services Contractors” (“Whistleblower Information”) document to their employees performing work in support of the products and services delivered under this contract (https://oig.justice.gov/sites/default/files/2020-04/NDAA-brochure.pdf). By agreeing to the terms and conditions of this contract, the prime contractor acknowledges receipt of this requirement, in accordance with 41 U.S.C. § 4712 and FAR 3.906 & 52.203-17, and commits to distribution. Within 45 days of award, the contractor must provide confirmation to the contracting officer verifying that it has distributed the whistleblower information as required.

(End of Clause)

DOJ-02 Contractor Privacy Requirements (JAN 2022)

A. Limiting Access to Privacy Act and Other Sensitive Information

(1) Privacy Act Information

In accordance with FAR 52.224-1 Privacy Act Notification (APR 1984) and FAR 52.224-2 Privacy Act (APR 1984), if this contract requires Contractor personnel to have access to information protected by the Privacy Act of 1974, the contractor is advised that the relevant DOJ system of records notices (SORNs) applicable to this Privacy Act information may be found at https://www.justice.gov/opcl/doj-systems-records.[1] Applicable SORNs published by other agencies may be accessed through those agencies’ websites or by searching the Federal Digital System (FDsys) available at http://www.gpo.gov/fdsys/. SORNs may be updated at any time.

(2) Prohibition on Performing Work Outside a Government Facility/Network/Equipment

Except where use of Contractor networks, IT, other equipment, or Workplace as a Service (WaaS) is specifically authorized within this contract, the Contractor shall perform all tasks on authorized Government networks, using Government-furnished IT and other equipment and/or WaaS and Government information shall remain within the confines of authorized Government networks at all times. Any handling of Government information on Contractor

networks or IT must be approved by the Senior Component Official for Privacy of the component entering into this contract. Except where remote work is specifically authorized within this contract, the Contractor shall perform all tasks described in this document at authorized Government facilities; the Contractor is prohibited from performing these tasks at or removing Government-furnished information to any other facility; and Government information shall remain within the confines of authorized Government facilities at all times. Contractors may only access classified materials on government furnished equipment in authorized government owned facilities regardless of remote work authorizations.

(3) Prior Approval Required to Hire Subcontractors

The Contractor is required to obtain the Contracting Officer's approval prior to engaging in any contractual relationship (Subcontractor) in support of this contract requiring the disclosure of information, documentary material and/or records generated under or relating to this contract. The Contractor (and any Subcontractor) is required to abide by Government and Agency guidance for protecting sensitive and proprietary information.

(4) Separation Checklist for Contractor Employees

The Contractor shall complete and submit an appropriate separation checklist to the Contracting Officer before any employee or Subcontractor employee terminates working on the contract. The Contractor must submit the separation checklist on or before the last day of employment or work on the contract. The separation checklist must verify: (1) return of any Government-furnished equipment; (2) return or proper disposition of personally identifiable information (PII)[2], in paper or electronic form, in the custody of the employee or Subcontractor employee including the sanitization of data on any computer systems or media as appropriate; and (3) termination of any technological access to the Contractor’s facilities or systems that would permit the terminated employee’s access to PII or other sensitive information.

In the event of adverse job actions resulting in the dismissal of a Contractor or Subcontractor employee before the separation checklist can be completed, the Prime Contractor must notify the Contracting Officer within 24 hours and confirm receipt of the notification. In the case the Contractor is unable to notify the Contracting Officer, then the Contractor should notify the Contract Officer’s Representative (COR).

Contractors must complete the separation checklist with the Contracting Officer or COR by returning all Government-furnished property including, but not limited to, computer equipment, media, credentials and passports, smart cards, mobile devices, Personal Identity Verification (PIV) cards, calling cards, and keys and terminating access to all user accounts and systems. Unless the Contracting Officer requests otherwise, the relevant Program Manager or other Key Personnel designated by the Contracting Officer or COR may facilitate the return of equipment.

B. Privacy Training, Safeguarding, and Remediation

(1) Required Security and Privacy Training for Contractors

The Contractor must ensure that all employees take appropriate privacy training, including Subcontractors who have access to PII as well as the creation, use, dissemination and/or destruction of PII at the outset of the employee’s work on the contract and every year thereafter. Training must include procedures on how to properly handle PII, including heightened security requirements for the transporting or transmission of sensitive PII, and reporting requirements for a suspected breach or loss of PII. These courses, along with more information about DOJ security and training requirements for Contractors, are available at https://www.justice.gov/jmd/learndoj. The Federal Information Security Modernization Act of 2014 (FISMA) requires all individuals accessing DOJ information to complete training on records management, cybersecurity awareness, and information system privacy awareness. Contractor employees are required to sign the “Privacy Rules of Behavior,” acknowledging and agreeing to abide by privacy law, policy, and certain privacy safeguards, prior to accessing DOJ information. These Rules of Behavior are made available to all new users of DOJ’s computer network and to trainees at the conclusion of DOJ-OPCL-CS-0005.

The Contractor should maintain copies of certificates as a record of compliance and must submit an email notification annually to the COR verifying that all employees working under this contract have completed the required privacy and cybersecurity training.

(2) Safeguarding PII Requirements

Contractor employees must comply with DOJ Order 0904 and other guidance published to the publicly-available Office of Privacy and Civil Liberties (OPCL) Resources page[3] relating to the safeguarding of PII, including the use of additional controls to safeguard sensitive PII (e.g., the encryption of sensitive PII). This requirement flows down from the Prime Contractor to all Subcontractors and lower tiered subcontracts.

(3) Non-Disclosure Agreement Requirement

Prior to commencing work, all Contractor personnel that may have access to PII or other sensitive information shall be required to sign a Non-Disclosure Agreement (NDA) and the DOJ IT Rules of Behavior. The Non-Disclosure Agreement:

(a) prohibits the Contractor from retaining or divulging any PII or other sensitive information, or derivatives therefrom, furnished by the Government or to which they may otherwise come in contact as a result of their performance of work under the contract/task order that is otherwise not publicly available, whether or not such information has been reduced to writing; and

(b) requires the Contractor to report any loss of control, compromise, unauthorized disclosure, or unauthorized acquisition of PII or other sensitive information to the component-level or headquarters Security Operations Center within one (1) hour of discovery.

The Contractor should maintain signed copies of the NDA for all employees as a record of compliance. The Contractor should also provide copies of each employee's signed NDA to the Contracting Officer before the employee may commence work under the contract/task order.

(4) Prohibition on Use of PII in Vendor Billing and Administrative Records

The Contractor's invoicing, billing, and other financial or administrative records or databases is not authorized to regularly store or include any sensitive PII or other confidential government information that is created, obtained, or provided during the performance of the contract without the written permission of the Senior Component Official for Privacy (SCOP). It is acceptable to list the names, titles and contact information for the Contracting Officer, COR, or other personnel associated with the administration of the contract in the invoices as needed.

(5) Reporting Actual or Suspected Data Breach

Contractors must report any actual or suspected breach of PII within one hour of discovery.[4] A "breach" is an incident or occurrence that involves the loss of control, compromise, unauthorized disclosure, unauthorized acquisition, or any similar occurrence where: (1) a person other than an authorized user accesses or potentially accesses PII or (2) an authorized user accesses or potentially accesses PII for an other than authorized purpose. The report of a breach must be made to DOJ. The Contractor must cooperate with DOJ's inquiry into the incident and efforts to minimize risks to DOJ or individuals, including remediating any harm to potential victims.

(a) The Contractor must develop and maintain an internal process by which its employees and Subcontractors are trained to identify and report the breach, consistent with DOJ Instruction 0900.00.01[5], Reporting and Response Procedures for a Breach of Personally Identifiable Information.

(b) The Contractor must report any such breach by its employees or Subcontractors to the DOJ Security Operations Center (dojcert@usdoj.gov, 202-357-7000); Component-level Security Operations Center and Component-level Management Team, where appropriate; the COR; and the Contracting Officer within one (1) hour of the initial discovery.

(c) The Contractor must provide a written report to the DOJ Security Operations Center (dojcert@usdoj.gov, 202-357-7000) within 24 hours of discovery of the breach by its employees or Subcontractors. The report must contain the following information:

(i) Narrative or detailed description of the events surrounding the suspected loss or compromise of information.[6] Date, time, and location of the incident.
(ii) Amount, type, and sensitivity of information that may have been lost or compromised, accessed without authorization, etc.

(iii) Contractor's assessment of the likelihood that the information was compromised or lost and the reasons behind the assessment.[7]
(iv) Names and classification of person(s) involved, including victim, Contractor employee/Subcontractor and any witnesses.
(v) Cause of the incident and whether the company's security plan was followed and, if not, which specific provisions were not followed.[8]
(vi) Actions that have been or will be taken to minimize damage and/or mitigate further compromise.
(vii) Recommendations to prevent similar situations in the future, including whether the security plan needs to be modified in any way and whether additional training may be required.

(d) The Contractor shall provide full access and cooperation for all activities determined by the Government to be required to ensure an effective incident response, including providing all requested images, log files, and event information to facilitate rapid resolution of sensitive information incidents.

(e) At the Government's discretion, Contractor employees or Subcontractor employees may be identified as no longer eligible to access PII or to work on that contract based on their actions related to the loss or compromise of PII.

(6) Victim Remediation

At DOJ's request, the Contractor is responsible for notifying victims and providing victim remediation services in the event of a breach of PII held by the Contractor, its agents, or its Subcontractors, under this contract. Victim remediation services shall include at least 18 months of credit monitoring and, for serious or large incidents as determined by the Government, call center help desk services for the individuals whose PII was lost or compromised. When DOJ requests notification, the Department Chief Privacy and Civil Liberties Officer and SCOP will direct the Contractor on the method and content of such notification to be sent to individuals whose PII was breached. By performing this work, the Contractor agrees to full cooperation in the event of a breach. The Contractor should be self-insured to the extent necessary to handle any reasonably foreseeable breach, with another source of income, to fully cover the costs of breach response, including but not limited to victim remediation.

C. Government Records Training, Ownership, and Management

(1) Records Management Training and Compliance

(a) The Contractor must ensure that all employees and Subcontractors that have access to PII as well as to those involved in the creation, use, dissemination and/or destruction of PII take the *DOJ Records and Information Training for New Employees (RIM)* training course or another training approved by the Contracting Officer or COR. This training will be provided at the outset of the Subcontractor's/employee's work on the contract and every year thereafter. The Contractor shall maintain copies of certificates as a record of compliance and must submit an email notification annually to the COR verifying that all employees working under this contract have completed the required records management training.

(b) The Contractor agrees to comply with Federal and Agency records management policies, including those policies associated with the safeguarding of records containing PII and those covered by the Privacy Act of 1974. These policies include the preservation of all records created or received regardless of format, mode of transmission, or state of completion.

(2) Records Creation, Ownership, and Disposition

(a) The Contractor shall not create or maintain any records not specifically tied to or authorized by the contract using Government IT equipment and/or Government records or that contain Government Agency information. The Contractor shall certify, in writing, the appropriate disposition or return of all Government information at the conclusion of the contract or at a time otherwise specified in the contract. In accordance with 36 CFR 1222.32, the Contractor shall maintain and manage all Federal records created in the course of performing the contract in accordance with Federal law. Records may not be removed from the legal custody of DOJ or destroyed except in accordance with the provisions of the agency records schedules.

(b) Except as stated in the Performance Work Statement and, where applicable, the Contractor's Commercial License Agreement, the Government Agency owns the rights to all electronic information (electronic data,

electronic information systems or electronic databases and all supporting documentation and associated metadata created as part of this contract. All deliverables (including all data and records) under the contract are the property of the U.S. Government and may be considered federal records, for which the Agency shall have unlimited rights to use, dispose of, or disclose such data contained therein. The Contractor must deliver sufficient technical documentation with all data deliverables to permit the agency to use the data.

(c) The Contractor shall not retain, use, sell, disseminate, or dispose of any government data/records or deliverables without the express written permission of the Contracting Officer or Contracting Officer's Representative. The Agency and its contractors are responsible for preventing the alienation or unauthorized destruction of records, including all forms of mutilation. Willful and unlawful destruction, damage or alienation of Federal records is subject to the fines and penalties imposed by 18 U.S.C. § 2701. Records may not be removed from the legal custody of the Agency or destroyed without regard to the provisions of the Agency records schedules.

D. Data Privacy and Oversight

(1) Restrictions on Testing or Training Using Real Data Containing PII

The use of real data containing PII from any source for testing or training purposes is generally prohibited. The Contractor shall use synthetic or de-identified real data for testing or training whenever feasible.

(2) Requirements for Contractor IT Systems Hosting Government Data

The Contractor is required to obtain an Authority To Operate (ATO) for any IT environment owned or controlled by the Contractor or any Subcontractor on which Government data shall reside for the purposes of IT system development, design, data migration, testing, training, maintenance, use, or disposal.

(3) Requirement to Support Privacy Compliance

(a) If this contract requires the development, maintenance or administration of information technology[9], the Contractor shall support the completion of the Initial Privacy Assessment (IPA) document, if requested by Department personnel. An IPA is the first step in a process to identify potential privacy issues and mitigate privacy risks. The IPA asks basic questions to help components assess whether additional privacy protections may be needed in designing or implementing a project[10] to mitigate privacy risks, and whether compliance work may be needed. Upon review of the IPA, the OPCL determines whether a Privacy Impact Assessment (PIA) document and/or SORN, or modifications thereto, are required. The Contractor shall provide adequate support to complete the applicable risk assessment and PIA document in a timely manner, and shall ensure that project management plans and schedules include the IPA, PIA, and SORN (to the extent required) as milestones. Additional information on the privacy compliance process at DOJ, including IPAs, PIAs, and SORNs, is located on the DOJ OPCL website (https://dojnet.doj.gov/privacy/), including DOJ Order 0601, Privacy and Civil Liberties. The Privacy Impact Assessment Guidance and Template outline the requirements and format for the PIA.

(b) If the contract involves an IT system build or substantial development or changes to an IT system that may require privacy risk assessment and documentation, the Contractor shall provide adequate support to DOJ to ensure DOJ can complete any required assessment, and IPA, PIA, SORN, or other supporting documentation to support privacy compliance. The Contractor shall work with personnel from the program office, OPCL, the Office of the Chief Information Officer (OCIO), and the Office of Records Management and Policy to ensure that the privacy assessments and documentation are kept on schedule, that the answers to questions in the documents are thorough and complete, and that questions asked by the OPCL and other offices are answered in a timely fashion. The Contractor must ensure the completion of required PIAs and documentation of privacy controls consistent with federal law and standards, e.g. NIST 800-53, Rev. 5; and compliance with the Privacy Act of 1974, E-Government Act of 2002, Federal Information Security Modernization Act of 2014, and key OMB guidelines, e.g., OMB Circular A-130.

[1] "[T]he term 'record' means any item, collection, or grouping of information about an individual that is maintained by an agency, including, but not limited to, his education, financial transactions, medical history, and criminal or employment history and that contains his name, or the identifying number, symbol, or other identifying particular assigned to the individual, such as a finger or voice print or a photograph." 5 U.S.C. § 552a(a)(4). "[T]he term 'system of records' means a group of any records under the control of any agency from which information is retrieved by the name of the individual or by some identifying number, symbol, or other identifying particular assigned to the individual." 5 U.S.C. § 552a(a)(5).

[2] As stated in FAR 52.224-3 and Office of Management and Budget (OMB) Circular A-130, Managing Federal Information as a Strategic Resource (2016), "'personally identifiable information' means information that can be used to distinguish or trace an individual's identity, either alone or when combined with other information that is linked or linkable to a specific individual." Regarding "sensitive PII," "[t]he sensitivity level of the PII will depend on the context, including the purpose for which the PII is created, collected, used, processed, stored, maintained, disseminated, disclosed, or disposed. For example, the sensitivity level of a list of individuals' names may depend on the source of the information, the other information associated with the list, the intended use of the information, the ways in which the information will be processed and shared, and the ability to access the information." OMB Circular A-130, at App. II-2.
[3] The DOJ OPCL Resources page is available at https://www.justice.gov/opcl/resources.
[4] As stated in DOJ Instruction 0900, "Contractors must notify the Contracting Officer, the Contracting Officer's Representative, and JSOC (or component-level SOC) within 1 hour of discovering any incidents, including breaches, consistent with this Instruction, guidance issued by the CPCLO, NIST standards and guidelines, and the US-CERT notification guidelines."
[5] https://www.justice.gov/file/4336/download
[6] As stated in DOJ Instruction 0900, the description should include the type of information that constitutes PII; purpose for which PII is collected, maintained, and used; extent to which PII identifies a peculiarly vulnerable population; the determination of whether the information was properly encrypted or rendered partially or completely inaccessible by other means; format of PII (e.g., whether PII was structured or unstructured); length of time PII was exposed; any evidence confirming that PII is being misused or that it was never accessed.
[7] As stated in DOJ Instruction 0900, the report should include the nature of the cyber threat (*e.g.*, Advanced Persistent Threat, Zero Day Threat, data exfiltration) for cyber incidents.
[8] As stated in DOJ Instruction 0900, the report should include analysis on whether the data is accessible, usable, and intentionally targeted.
[9] As defined in 40 U.S.C. § 11101, the term "information technology" means any equipment or interconnected system or subsystem of equipment, used in the automatic acquisition, storage, analysis, evaluation, manipulation, management, movement, control, display, switching, interchange, transmission, or reception of data or information by the executive agency, if the equipment is used by the executive agency directly or is used by a contractor under a contract with the executive agency that requires the use (i) of that equipment or (ii) of that equipment to a significant extent in the performance of a service or the furnishing of a product; includes computers, ancillary equipment (including imaging peripherals, input, output, and storage devices necessary for security and surveillance), peripheral equipment designed to be controlled by the central processing unit of a computer, software, firmware and similar procedures, services (including support services), and related resources; but does not include any equipment acquired by a federal contractor incidental to a federal contract.
[10] In this instance, the term "project" is used to scope the activities (e.g., creating, collecting, using, processing, storing, maintaining, disseminating, disclosing, or disposing of information) covered by an IPA. A project is intended to be technology-neutral, and may include an information system, a digital service, an information technology, a combination thereof, or some other activity that may create potential privacy issues or privacy risks that would benefit from an IPA. The scope of a project covered by an IPA is discretionary, but components should work with their SCOP and OPCL.

(End of Clause)

DOJ-03 Personnel Security Requirements For Contractor Employees (Nov 2021)

Work performed under this contract will involve any one or more of the following: access to DOJ Information, which may include Controlled Unclassified Information (CUI), i.e., unclassified, sensitive DOJ information, and/or access to DOJ Information Technology (IT) systems, and/or unescorted access to DOJ space or facilities. Contractor employees will occupy Public Trust Positions, unless clause alternates are applied.

1. General Requirements

(a) (1) All references to "contract(or) personnel" and "contract(or) employee" in this clause means all individuals, without limitation, to include individuals employed by the contractor, team member, subcontractor, consultant, and/or independent contractor, who will have access to information of the Department of Justice (DOJ) or information that is within the custody and control of the DOJ, access to DOJ IT systems, and/or unescorted access to DOJ facilities/space in connection with the performance of this contract. "Employment" as used herein does not create nor imply an employer/employee relationship between the DOJ and contractor employees.

(b) (1) The type of security investigation required for each contractor employee will be governed by the type and risk level of information made available to the contractor employee. The contractor will not be permitted to commence

performance under this contract until a sufficient number of its personnel, as determined by the Security Programs Manager (SPM), in consultation with the Contracting Officer's Representative if one is appointed, have received the requisite security approval.

(c) Except where specifically noted otherwise, the federal government will be responsible for the cost and conduct of the investigation.

(d) The contractor shall ensure that no contractor employee commences performance prior to receipt of a written authorization from the contracting officer, COR, or the SPM that performance by the respective contractor employee is authorized.

(e) The data and other information to which the contractor may have access as a result of this contract is the property of, and/or within the custody and control of, the Department, and its disclosure to third parties is governed by various statutes and regulations, the violation of which may subject the discloser to criminal penalties.

2. Citizenship and Residency Requirements

(a) Residency Requirement. (1) Contractor employees in Public Trust positions, both U.S. citizens and non-U.S. citizens, must meet the Department's residency requirement if they will require access to DOJ information, IT systems, or unescorted access to facilities. For three years (not necessarily consecutive years) out of the last five years immediately prior to employment under the Department contract the contractor employee must have: (i) resided in the U.S.; (ii) worked for the U.S. in a foreign country as either an employee or contractor in a federal civilian or military capacity; or, (iii) been a dependent of a federal civilian or military employee or contractor working for the U.S. in a foreign country. At the Department's sole discretion, the residency requirement may be waived by the Department Security Officer (DSO) for contractor employees on a case-by-case basis where justified by extenuating circumstances. The residency requirement does not apply to contractor employees residing in foreign countries that are hired to work in American embassies/ consulates/missions located outside of the United States and who require access to DOJ information, IT systems, or unescorted access *provided that* an adequate background investigation can be conducted, with favorable adjudication, as determined by the DSO.

(b) Citizenship. (1) Aside from the specific exceptions set forth in Section 1.2(b)(2), for Public Trust positions, the DOJ requires that contractor employees be U.S. citizens and nationals, or lawful permanent residents seeking U.S. citizenship. Any prospective non-U.S. citizen contractor employee who requires access to DOJ information systems, DOJ information, and/or unescorted facilities access must also have been granted a waiver as described below in paragraphs 1.2(d) and/or (e). The contractor is responsible for verifying that the non-U.S. citizens working under this contract are lawful permanent residents seeking U.S. citizenship.

(2) *Exception for Certain Non-U.S. Citizen Contractor Employees*: (i) Non-U.S. citizen expert witnesses, litigative consultants, and interpreters in rare foreign languages are not required to be lawful permanent residents seeking U.S. citizenship. However, they must be granted a waiver for access to unclassified DOJ information, whether CUI or not, DOJ IT systems, and/or unescorted facility access, as described below in paragraph 1.2(d) and (e), regardless of the duration of their duties. (ii) Non-U.S. Citizen contractor employees residing in foreign countries who are hired to work for the Department of Justice in American embassies/consulates/missions outside of the United States are not required to be lawful permanent residents seeking U.S. citizenship.

(c) Dual Citizenship. (1) U.S. citizens who hold dual citizenship with a foreign country are considered U.S. citizens within the meaning of this clause, and may be considered for, but are not entitled to, contract employment as U.S. citizens consistent with this clause. The means by which the contractor employee obtained or exercises his or her dual citizenship status will be a consideration in the Public Trust Investigation (PTI) adjudication, and/or waiver approval processes discussed in this clause.

(d) Access to DOJ Information Technology Systems. Non-U.S citizens are not authorized to access DOJ information technology (IT) systems or assist in the development, operation, management, or maintenance of DOJ IT systems, including providing IT system support, unless a waiver has been granted by the Head of the DOJ component or designee, with the prior concurrence of both the DSO and the DOJ Chief Information Officer, allowing computer access by the non-U.S. citizen. Such a waiver will be granted only in exceptional and unique circumstances on a case-by-case basis. It should be noted that the Justice Consolidated Office Network (JCON) is a sensitive DOJ IT system and any contractor employee who will need access to JCON must be a U.S. citizen or have received a waiver. In order for a waiver to be considered for approval: (1) There must be a compelling reason for using this individual as opposed to a U.S. citizen; (2)

The type of personnel security vetting that has been conducted on the individual, and vetting results, that would mitigate risk; and (3) The waiver must be in the best interest of the federal government.

(e) Access to Unclassified DOJ Information and Unescorted Access to DOJ Facilities or Space. (1) Except as provided under 1.2(b)(2), non-U.S. citizens are not authorized to access DOJ information and/or unescorted access to DOJ facilities or space, unless a waiver has been granted by the DSO, allowing access by the non-U.S. citizen. Such a waiver will be granted on a case-by-case basis where justified at the discretion of the DSO.

3. Background Investigation Requirements

(a) (1) Unless otherwise stated below, all contractor personnel are subject to a Public Trust Investigation (PTI). The SPM will determine the type of investigation for each contractor employee based on the risk category (i.e., the nature of the position and degree of harm that could be caused by the individual in that position) and whether the position is long-term or short-term. The PTI risk categories are listed below.

(i) High Risk Positions. The minimum background investigation required is a Tier 4 (T4) investigation, and the five-year reinvestigation required is a Tier 4R (T4R) investigation. The 2017 version of the Standard Form (SF) 85P, Questionnaire for Public Trust Positions, is required.
(ii) Moderate Risk Positions. The minimum background investigation required is a Tier 2 (T2) investigation. The five-year reinvestigation required is a Tier 2R (T2R) investigation. The 2017 version of the SF-85P is required.
(iii) Low Risk/Non-Sensitive Positions. The minimum background investigation required for Low Risk/Non-Sensitive positions is a Tier 1 (T1) investigation and the required five-year reinvestigation is also a Tier 1 (T1) investigation. The SF 85, Questionnaire for Non-Sensitive Positions, is required.

(b) *Exception for Expert Witnesses*. Expert Witnesses, litigative consultants, and interpreters in rare foreign languages may not be subject to full background investigation requirements if alternative security requirements are approved by the DSO.

(c) *Short-Term U.S. Citizen Contractor Employees*. Other than the exception in Section 1.3(b), short-term contractor employees (6 months or less) who are U.S. citizens are not subject to a full background investigation, however, must receive an approved pre-employment background investigation waiver. The required forms to complete and submit are listed in Section 1.4(b) and (c)(2).

(d) *Long-Term U.S. Citizen Contractor Employees*. Other than the exception in Section 1.3(b), all long-term U.S. citizen employees (longer than 6 months) are subject to a full background investigation in the risk category appropriate to the position they will hold.

(e) *Non-U.S. Citizen Contractor Employees*. Other than the exception in 1.3(b), all non-U.S. citizen contractor employees regardless of performance duration (short or long term) are subject to a full background investigation in the risk category appropriate to the position they will hold.

(f) *Reciprocity*. (1) A Public Trust Investigation will be accepted under reciprocity if it meets the following guidelines: (i) the investigation is current (investigations are considered current if completed within the last five years) and favorably adjudicated, or the reinvestigation has been deferred; (ii) the investigation meets or exceeds the level of investigation required for the DOJ contractual instrument; (iii) there has been no continuous (not cumulative) break in federal contract/ service employment of two years or more; (iv) there is no derogatory information since the favorable fitness determination or adjudication that calls into question the individual's fitness based on character or conduct; and (v) the investigative record does not show conduct that is incompatible with the core duties of the new contract position. A "core duty" is a continuing responsibility that is of particular importance to the relevant covered position or the achievement of an agency's mission. Core duties will vary from position to position.

4. Background Investigation Process

(a) *e-QIP (or its successor)*. Public Trust background investigations/reinvestigations of contractor employees will be performed by the DCSA. The investigative process requires contractor employees to complete the Electronic Questionnaires for Investigations Processing (e-QIP) and provide additional information as specified in paragraph 1.4(b) below. Immediately after contract award, the contractor shall designate an employee as its "e-QIP Initiator" and provide the name of this person to the SPM. The e-QIP Initiator must have, at a minimum, a favorably adjudicated Tier 1 investigation and the appropriate DOJ security approval before being given access to e-QIP. After the e-QIP Initiator's security approval is granted, the Contractor will be configured in e-QIP as a sub-agency to DOJ. The contractor

will then be responsible for initiating investigations for all contract personnel, whose previous investigation does not meet reciprocity, in e-QIP for completion of the security questionnaire form and forwarding the electronic form with the remainder of the security package to the SPM. Subject to the prior written approval of the SPM, the contractor may designate an e-QIP Initiator for each subcontractor. Subcontractor e-QIP Initiators must have, at a minimum, a favorably adjudicated Tier 1 investigation and the appropriate DOJ security approval before being provided access to e-QIP.

(b) *Additional Documentation*. (1) In addition to completing the e-QIP questionnaire (see 1.4(a), above), the contractor shall ensure that each contractor employee occupying Public Trust Positions, including short-term employees, completes and submits the following information through the contractor's Corporate Security Officer:

(i) Digital Fingerprinting/FD-258 Applicant Fingerprint Card. Two sets are required per applicant. The contractor may schedule appointments with the SPM to be digitally fingerprinted; otherwise, fingerprinting by the FBI or other law enforcement entity, as approved by the SPM, is required to ensure the identity of the person being fingerprinted and for printing quality. All pertinent information must be completed by the individual taking the fingerprints (FBI or other). Use of the physical FD-258 Applicant Fingerprint Card should only be used in extenuating circumstances.
(ii) DOJ-555 Fair Credit Reporting Act Disclosure. Authorizes DOJ to obtain one or more consumer/credit reports on the individual. This form will be required if the Component SPM determines a credit check is necessary for its Low Risk Level 1 contractor positions.
(iii) OF-306, Declaration for Federal Employment.
(iv) Foreign National Relatives or Associates Statement. This is only required if foreign national relatives or associates were not disclosed on the security questionnaire form.
(v) Self-Reporting Requirements for All Contractor Personnel. This is an acknowledgement and acceptance statement that every contractor must sign.
(vi) Additional information as may be required based on the review of the security questionnaire form.

The contractor shall review all forms/documents to ensure each is complete, accurate and meets all DOJ requirements, including applicable residency and citizenship requirements. The contractor shall resolve any issues or discrepancies with the contractor employee, including resubmission of corrected forms or documentation. Completed forms/documents shall be submitted to the SPM (or designee, which may include the COR) within five (5) calendar days after being finalized.

(c) Adjudication and Pre-Employment Background Investigation Waivers

(1) Except as set forth in this section, background investigations must be conducted and favorably adjudicated for each contractor employee prior to commencing their work on this contract. Where programmatic needs do not permit the federal government to wait for completion of the entire background investigation, a pre-employment background investigation waiver for *public trust contractors* can be granted by the SPM, in consultation with the cognizant COR. Pre-employment waivers cannot be used to circumvent delays in clearing classified contractors through the DCSA, if access to classified information is required.

(2) As directed by the SPM, the contractor shall initiate pre-employment waivers for Public Trust Positions when necessary. This may entail performing credit history checks and submission of these checks as part of the security package, including satisfactory resolution of any issues prior to submission to the federal government. A waiver will be disapproved if it develops derogatory information that cannot be resolved in the contractor employee's favor. When a waiver has been disapproved, the CO, in consultation with the SPM and COR, will determine (i) whether the contractor employee will no longer be considered for work on a DOJ contract or (ii) whether to wait for the completion and favorable adjudication of the background investigation before the contractor employee commences work on a Department contract. The pre-employment background investigation waiver requirements include:

1. Verification of citizenship (copy of a birth certificate, naturalization certificate, or U.S. passport);
2. Verification of compliance with the *DOJ Residency Requirement* of this Clause;
3. Favorable review of the security questionnaire form;
4. Favorable FBI fingerprint results;
5. Favorable credit report;
6. Favorable review of the OF-306 form, Declaration for Federal Employment;
7. Verification of the initiation of the appropriate background investigation (for long-term personnel); and
8. Receipt of the signed DOJ *Self-Reporting Requirements for All Contractor Personnel* (see Section 6, below).

(3) The investigating agency (DCSA) will provide the SPM with the results of each proposed contractor employee's Public Trust investigation. Upon receipt of the investigation and any other pertinent documents from the investigating agency, the SPM will determine whether each proposed contractor employee should be granted employment security approval.

(4) The COR will notify the contractor of the results of Public Trust background investigations as they are completed and adjudicated, including any individual who is found ineligible for employment security approval. For any individual found ineligible for employment on a Department contract, the contractor shall propose a replacement and initiate the background investigation process consistent with this clause.

5. Identity Proofing and Badging

(a) Access to DOJ Information, federally-controlled IT systems, and/or unescorted access to federally-controlled facilities or space (regardless of whether the contractor employee will be issued a DOJ PIV card or building access badge) shall be made available after each respective contractor employee has (1) met the identity proofing requirements outlined below, and (2) completed all other security requirements stated elsewhere in this contract.

(b) (1) Public Trust contractor employees must appear in person at least once before a DOJ official or an official of a trusted contract company (i.e., has a facility security clearance) who is responsible for checking two forms of identification in original form prior to commencement of work by the contractor employee and PIV card or building access badge issuance (as applicable). Approval will be documented by the DOJ official or an official of a trusted contract company. (Acceptable documents are listed in Form I 9, Employment Eligibility Verification, and at least one document must be a valid state or federal government issued picture ID).

(c) [Reserved]

(d) All contractor employees requiring unescorted access to a DOJ controlled facility or space shall comply with the PIV card or building access badge requirements outlined below:

(i) When any contractor employee enters a DOJ building for the first time, he/she shall allow one hour for security processing and the creation and issuance of a building access badge. PIV cards require additional processing time and will not likely be issued on the same day.
(ii) Building access badges shall be subject to periodic review by the contractor employee's supervisor and checked against his/her personal identification. The contractor employees shall present themselves for the issuance of renewed badges when required by the government as scheduled by the COR or his/her designee. The contractor shall notify the COR when contractor employee badges are lost, and must immediately apply for reissuance of a replacement badge. The contractor shall pay for reissued building access badges at no cost to the government. It is the contractor employee's responsibility to return badges to the COR or his/her designee when a contractor employee is dismissed, terminated or assigned to duties not within the scope of this contract.

6. Employee Reporting Requirements

(a) All contractor employees must sign the DOJ *Self-Reporting Requirements for All Contractor Personnel* statement acknowledging and accepting the DOJ requirement that they immediately self-report certain information using the Department's iReport system. The COR or SPM will provide the Self-Reporting statement as well as a list of reportable information, which varies by position sensitivity designation, to the contractor employee before commencing work under the contract. If the contractor employee does not have access to the DOJ iReport System, the COR or SPM will provide a fillable form for the contractor employee to complete and submit.

(b) The COR and SPM will review the written report and documentation and make a determination regarding continued employment on a DOJ contract.

(c) DOJ reporting requirements are in addition to the DCSA reporting requirements and the contractor's internal reporting requirements.

7. Replacement Personnel

(a) The contractor shall make every effort to avoid costs to the government for security investigations for replacement of contractor employees, and in so doing shall ensure that otherwise satisfactorily performing and physically able contractor employees remain in contract performance for the duration of the contract. The contractor shall take all necessary steps

to ensure that contractor personnel who are selected for assignment to this contract are professionally qualified and personally reliable, of reputable background and sound character, and able to meet all other requirements stipulated in the contract.

(b) The fact that the government performs security investigations shall not in any manner relieve the contractor of its responsibility to ensure that all contract personnel are reliable and of reputable background and sound character. Should a security investigation conducted by the government and/or a contractor's self-report or failure to self-report render ineligible a contractor employee, the contracting officer will determine whether the contractor has violated this clause. The contracting officer may direct the contractor, at its own expense, to remove and replace any contractor personnel who fails to comply with or violates applicable requirements of this contract. Such action may be taken at the government's direction without prejudice to its rights under any other provision of this contract, including termination for default, and the contractor may be held liable, at a minimum, for all reasonable and necessary costs incurred by the government to (i) provide coverage (performance) through assignment of individuals employed by the government or third parties in those cases where absence of contractor personnel would cause either a security threat or DOJ program disruption and (ii) conduct security investigations in excess of those which would otherwise be required.

(c) Nothing in this clause shall require the contractor to bear costs involved in the conduct of security investigations for replacement of a contractor employee who separates from the contractor of his/her own accord, is incapacitated, or is deceased.

(d) The contractor shall comply with the terms and conditions set forth under this clause and assumes all liability for failure to comply. The rights and remedies conferred upon the government by this clause are in addition to all and other rights and remedies pursuant to the contract and as established by law.

(End of Clause)

DOJ-08 Continuing Contract Performance During a Pandemic Influenza or other National Emergency (OCT 2007)

During a Pandemic or other emergency we understand that our contractor workforce will experience the same high levels of absenteeism as our federal employees. Although the Excusable Delays and Termination for Default clauses used in government contracts list epidemics and quarantine restrictions among the reasons to excuse delays in contract performance, we expect our contractors to make a reasonable effort to keep performance at an acceptable level during emergency periods.

The Office of Personnel Management (OPM) has provided guidance to federal managers and employees on the kinds of actions to be taken to ensure the continuity of operations during emergency periods. This guidance is also applicable to our contract workforce. Contractors are expected to have reasonable policies in place for continuing work performance, particularly those performing mission critical services, during a pandemic influenza or other emergency situation. The types of actions a federal contractor should reasonably take to help ensure performance are:

- Encourage employees to get inoculations or follow other preventive measures as advised by the public health service.
- Contractors should cross-train workers as backup for all positions performing critical services. This is particularly important for work such as guard services where telework is not an option.
- Implement telework to the greatest extent possible in the workgroup so systems are in place to support successful remote work in an emergency.
- Communicate expectations to all employees regarding their roles and responsibilities in relation to remote work in the event of a pandemic health crisis or other emergency.
- Establish communication processes to notify employees of activation of this plan.
- Integrate pandemic health crisis response expectations into telework agreements.
- With the employee, assess requirements for working at home (supplies and equipment needed for an extended telework period). Security concerns should be considered in making equipment choices; agencies or

contractors may wish to avoid use of employees' personal computers and provide them with PCs or laptops as appropriate.

- Determine how all employees who may telework will communicate with one another and with management to accomplish work.
- Practice telework regularly to ensure effectiveness.
- Make it clear that in emergency situations, employees must perform all duties assigned by management, even if they are outside usual or customary duties.
- Identify how time and attendance will be maintained.

It is the contractor's responsibility to advise the government contracting officer if they anticipate not being able to perform and to work with the Department to fill gaps as necessary. This means direct communication with the contracting officer or in his/her absence, another responsible person in the contracting office via telephone or email messages acknowledging the contractor’s notification. The incumbent contractor is responsible for assisting the Department in estimating the adverse impacts of nonperformance and to work diligently with the Department to develop a strategy for maintaining the continuity of operations.

The Department does reserve the right in such emergency situations to use federal employees. employees of other agencies, contract support from other existing contractors, or to enter into new contracts for critical support services. Any new contracting efforts would be acquired following the guidance in the Office of federal Procurement Policy issuance "Emergency Acquisitions", May, 2007 and Subpart 18.2. Emergency Acquisition Flexibilities, of the Federal Acquisition Regulations.

(End of Clause)

Section J - List of Attachments

Identifier	Title	Number of Pages
1	Herlong-Business Management Questionnaire-Attachment 1	1
2	WGD - 8-22-26 - Attachment 2	7

Section K - Representations, Certifications and Other Statements of Offerors

This Section Is Intentionally Left Blank

Section L - Instructions, Conditions and Notices to Offerors

Provisions By Reference

52.252-1 SOLICITATION PROVISIONS INCORPORATED BY REFERENCE (FEB 1998)		
This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es): www.acquisition.gov		
Provision	Title	Fill-ins (if applicable)
52.204-7 (DEV)	System for Award Management-Registration (Nov 2024) (DEVIATION NOV 2025)	
52.212-1 (DEV)	Instructions to Offerors-Commercial Products and Commercial Services (Sep 2023) (DEVIATION NOV 2025)	
2852.233-70	Protests Filed Directly with the Department of Justice (NOV 2020)	

Provisions By Full Text

Tailoring: Quote Submission Instructions/Evaluation and Award Methodology/SAM Registration/APEX/FOIA

Funds are not presently available for this solicitaiton. No award will be made udner this solicition until funds are made available and confirmed in writing by the Contracting Officer. The Government reserves the right to cancel this solicitation at any time: either before or after the clsoing date. In the event of cancellation, the Government shall have no obligation to reimburse any quoter for any costs incurred in connection with the preparation or submission of its quote.

The Bureau seeks price quotes that are discounted from the net ceiling rates established on the contractor's schedule in accordance with GSAM/R 538.7102-2(c)(2). The Government's evaluation shall be invlusive of all performance periods. The quoter may offer varying prices for performance periods, depending on the quantities ordered and the dates ordered.

The Federal Bureau of Prisons (FBOP) intent is to issue a Blanket Purchase Agreement (BPA) with the potential of five years in duration with a six (6) month extension period. If the duration of a contractor's Federal Supplly Schedule will not accommodate the entire duration of the FBOP BPA, the contractor may not be considered for award.

Quote Submission Requirements Instructions
The information requested below must be submitted by contractors and received before the solicitation response date and time. If any of the following information is not received, the Contracting Officer may elect to deem quotes non-compliant or request the required information from one or any of the contractors, whichever is most advantageous to the Government, at the discretion of the Contracting Officer:

1) Contractor shall provide a price list in the form of a unit price rate(s) with an aggregate total for each performance period. Test requirements for the base performance period and four (4) additional performance periods can be found in attachement 1 attached to the SF-1449. Aggregate total shall also be noted on the SF-1449 for each performance period.

2) Point of Contact informantion for professional references. The contractor should include a list of three contracts or BPA's awarded to your organization which are of related nature, size, and scope. Include the following for each: Customer name, address, phone number, email address, conract number, contact persons, contract amount, and contract status (active or complete) by completing and returning the attached Business Management Questionnaire.

3) Contractors shall identify a Point of Contact (POC) for issuance of orders and invoices. POC information should include name, title, pone number, and email address.

4) Certificate of Liability Insurance.

all quotes shall be submitted on or before the deadline identified on page one of the SF-1449 and will be accepted via email to **bwendorff@bop.gov**. Failure to provide all the required information detailed above may result in the quote being eliminated from consideration for award.

Questions regarding this requirement may be directed in writing, via email to Brian Wendorff, Contracting Officer at **bwendorff@bop.gov**.

Evaluation and Award Methodology:
Award of a BPA will be made to the quoter who submits a quotation conforming to the requirements of the solicitation, determined to be the best value to the Government considering ***price and past performance.***

Price:
Price shall be evaluated utilizing the total aggregate pricing offered by the quoter (aggregate total of base period plus all performance periods).

Past Performance:
The Contractor Performance Assessment Reporting System (CPARS) at **www.cpars.gov** and/or the professional references submitted with quotes, and/or any other releveant informantion available to the Contracting Officer may be used for past performance evaluation.

Technical Acceptance:
Technical specifications will be evaluated against approved FITARA requirements.

SAM Registration
All potential quoters are advised that this solicitation includes the provision at FAR 52.204-7 System for Award Management which requires that an offeror be registered in the SAM database as "All Awards" when submitting an offer or quote and continue to be registered throughout the duration of the BPA." Quoters shall include their Unique Entity Identifier (UEI) in their quotation. Failure to complete the registration procedures outlined in this clause may result in elimination from

consideration for award. If you have questions regarding the System for Award Management (SAM), Government procurements in general, or need assistance in the preparation of your quote, the APEX Accelerators program may be able to help. The APEX Accelerators was authorized by Congress in 1985 to expand the number of businesses capable of participating in government contracts. To locate an APEX Acclerator near you, go to **https://www.apexaccelerators.us/#/contact**.

Freedom of Information Act
The Freedom of Information Act (FOIA) and its amendments have resulted in an increasing number of requests to Federal Agencies for copies of quotes from other than Government sources. The quoter should identify information in its quote it believes should be withheld from these sources, on the basisit consists of "trade secrets and commercial or financial information obtained from a person and privileged or confidential" (exemption (b) (4) of the FOIA). This identification will assist in the decision by a responsible federal official to disclose or withhold the requested information. If a quoter considers elements of its quote to be exempt under FOIA, ensure the following notice is annotated on the title page of the quote: "Elements of this document, as identified on individual pages, are considered by the submitter to be privileged or confidential trade secrets or commercial or financial information not subject to mandatory disclosure under the Freedom of Information Act. Material considered privileged or confidential on this basis is contained on pages ____."

The quote must annotate each individual item it considers privileged or confidential under the FOIA exemption with the following notice: "The data or information is considered confidential or privileged, and not subject to mandatory disclosure under the FOIA."

All information in an offerors quote not designated may be subject to automatic public disclosure if it is requested under the FOIA. It must be emphasized that under the FOIA no information is automatically exempt from public disclosure. However, no disclosures will be made without careful evaluation, giving due regard to the need for safeguarding material considered privileged or confidential by the quoter. It is Department of Justice policy to withhold whenever possible material that is genuinely privileged or confidential.

Section M - Evaluation Factors for Award

Provisions By Reference

52.252-1 SOLICITATION PROVISIONS INCORPORATED BY REFERENCE (FEB 1998)		
This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es): www.acquisition.gov		
Provision	Title	Fill-ins (if applicable)
52.212-2 (DEV)	Evaluation-Commercial Products and Commercial Services (Nov 2021) (DEVIATION NOV 2025)	Evaluation Factors : "Price, Past Performance, Technically Acceptable"
52.217-5 (DEV)	Evaluation of Options (July 1990) (DEVIATION AUG 2025)	

Attachment 1

BUSINESS MANAGEMENT QUESTIONNAIRE

Your Business Name: _____

List three contracts awarded to <u>your</u> company that is of a related nature <u>or</u> three professional references who can support relevant past performance history achieved by <u>your</u> company. (Please do not list references for the subcontractor).

1. Customer & Address: _____

_____

(a) Contact Person: _____

(b) Phone Number: _____

(c) Email: _____

(d) Type of Work: _____

(e) Contract Value: _____

(f) Contract Status: [__] Active [__] Complete

2. Customer & Address: _____

_____

(a) Contact Person: _____

(b) Phone Number: _____

(c) Email: _____

(d) Type of Work: _____

(e) Contract Value: _____

(f) Contract Status: [__] Active [__] Complete

3. Customer & Address: _____

_____

(a) Contact Person: _____

(b) Phone Number: _____

(c) Email: _____

(d) Type of Work: _____

(e) Contract Value: _____

(f) Contract Status: [__] Active [__] Complete

Attachment 2

"

REGISTER OF WAGE DETERMINATIONS UNDER THE SERVICE CONTRACT ACT
By direction of the Secretary of Labor

U.S. DEPARTMENT OF LABOR
EMPLOYMENT STANDARDS ADMINISTRATION
WAGE AND HOUR DIVISION
WASHINGTON D.C. 20210

Wage Determination No.: 2015-5679
Revision No.: 32
Date Of Last Revision: 8/22/2026

Daniel W. Simms
Director

Division of
Wage Determinations

State: California

Area: California Counties of Lassen

Fringe Benefits Required Follow the Occupational Listing

OCCUPATION CODE - TITLE	FOOTNOTE	RATE
01000 - Administrative Support And Clerical Occupations		
01011 - Accounting Clerk I		20.19
01012 - Accounting Clerk II		22.66
01013 - Accounting Clerk III		25.35
01020 - Administrative Assistant		37.85
01035 - Court Reporter		22.38
01041 - Customer Service Representative I		19.95
01042 - Customer Service Representative II		21.77
01043 - Customer Service Representative III		24.43
01051 - Data Entry Operator I		19.35
01052 - Data Entry Operator II		21.12
01060 - Dispatcher, Motor Vehicle		28.09
01070 - Document Preparation Clerk		17.83
01090 - Duplicating Machine Operator		17.83
01111 - General Clerk I		18.56
01112 - General Clerk II		20.25
01113 - General Clerk III		22.72
01120 - Housing Referral Assistant		24.96
01141 - Messenger Courier		17.07
01191 - Order Clerk I		20.67
01192 - Order Clerk II		22.55
01261 - Personnel Assistant (Employment) I		20.65
01262 - Personnel Assistant (Employment) II		23.10
01263 - Personnel Assistant (Employment) III		25.76
01270 - Production Control Clerk		28.18
01290 - Rental Clerk		22.04
01300 - Scheduler, Maintenance		20.01
01311 - Secretary I		20.01
01312 - Secretary II		22.38
01313 - Secretary III		24.96
01320 - Service Order Dispatcher		25.11
01410 - Supply Technician		37.85
01420 - Survey Worker		29.20
01460 - Switchboard Operator/Receptionist		21.37
01531 - Travel Clerk I		18.49
01532 - Travel Clerk II		20.24
01533 - Travel Clerk III		22.38
01611 - Word Processor I		17.83
01612 - Word Processor II		20.01
01613 - Word Processor III		22.38
05000 - Automotive Service Occupations		
05005 - Automobile Body Repairer, Fiberglass		28.84
05010 - Automotive Electrician		29.13
05040 - Automotive Glass Installer		27.40
05070 - Automotive Worker		27.40
05110 - Mobile Equipment Servicer		23.92
05130 - Motor Equipment Metal Mechanic		30.88
05160 - Motor Equipment Metal Worker		27.40
05190 - Motor Vehicle Mechanic		30.88
05220 - Motor Vehicle Mechanic Helper		22.14
05250 - Motor Vehicle Upholstery Worker		25.65
05280 - Motor Vehicle Wrecker		27.40
05310 - Painter, Automotive		29.13
05340 - Radiator Repair Specialist		27.40
05370 - Tire Repairer		18.44
05400 - Transmission Repair Specialist		30.88
07000 - Food Preparation And Service Occupations		
07010 - Baker		18.63

Attachment 2

07041 - Cook I		21.96
07042 - Cook II		25.16
07070 - Dishwasher		17.13
07130 - Food Service Worker		18.07
07210 - Meat Cutter		20.65
07260 - Waiter/Waitress		16.89
09000 - Furniture Maintenance And Repair Occupations		
09010 - Electrostatic Spray Painter		25.14
09040 - Furniture Handler		17.83
09080 - Furniture Refinisher		25.14
09090 - Furniture Refinisher Helper		20.34
09110 - Furniture Repairer, Minor		22.77
09130 - Upholsterer		24.72
11000 - General Services And Support Occupations		
11030 - Cleaner, Vehicles		18.03
11060 - Elevator Operator		20.93
11090 - Gardener		28.41
11122 - Housekeeping Aide		20.93
11150 - Janitor		20.93
11210 - Laborer, Grounds Maintenance		22.22
11240 - Maid or Houseman		17.83
11260 - Pruner		20.64
11270 - Tractor Operator		26.29
11330 - Trail Maintenance Worker		22.22
11360 - Window Cleaner		22.53
12000 - Health Occupations		
12010 - Ambulance Driver		23.73
12011 - Breath Alcohol Technician		33.77
12012 - Certified Occupational Therapist Assistant		46.33
12015 - Certified Physical Therapist Assistant		38.83
12020 - Dental Assistant		28.80
12025 - Dental Hygienist		60.77
12030 - EKG Technician		51.17
12035 - Electroneurodiagnostic Technologist		51.17
12040 - Emergency Medical Technician		23.73
12071 - Licensed Practical Nurse I		30.18
12072 - Licensed Practical Nurse II		33.77
12073 - Licensed Practical Nurse III		37.66
12100 - Medical Assistant		23.50
12130 - Medical Laboratory Technician		40.71
12160 - Medical Record Clerk		24.16
12190 - Medical Record Technician		27.02
12195 - Medical Transcriptionist		30.18
12210 - Nuclear Medicine Technologist		74.23
12221 - Nursing Assistant I		16.46
12222 - Nursing Assistant II		18.51
12223 - Nursing Assistant III		20.20
12224 - Nursing Assistant IV		22.66
12235 - Optical Dispenser		23.30
12236 - Optical Technician		30.18
12250 - Pharmacy Technician		25.70
12280 - Phlebotomist		29.27
12305 - Radiologic Technologist		58.19
12311 - Registered Nurse I		36.73
12312 - Registered Nurse II		44.93
12313 - Registered Nurse II, Specialist		44.93
12314 - Registered Nurse III		54.37
12315 - Registered Nurse III, Anesthetist		54.37
12316 - Registered Nurse IV		65.17
12317 - Scheduler (Drug and Alcohol Testing)		41.83
12320 - Substance Abuse Treatment Counselor		30.65
13000 - Information And Arts Occupations		
13011 - Exhibits Specialist I		21.37
13012 - Exhibits Specialist II		25.89
13013 - Exhibits Specialist III		32.35
13041 - Illustrator I		21.37
13042 - Illustrator II		25.89
13043 - Illustrator III		32.35
13047 - Librarian		29.32
13050 - Library Aide/Clerk		20.23
13054 - Library Information Technology Systems Administrator		26.48
13058 - Library Technician		23.70
13061 - Media Specialist I		18.68
13062 - Media Specialist II		20.90
13063 - Media Specialist III		23.84
13071 - Photographer I		18.68
13072 - Photographer II		20.90
13073 - Photographer III		25.89
13074 - Photographer IV		31.67
13075 - Photographer V		38.32
13090 - Technical Order Library Clerk		25.40
13110 - Video Teleconference Technician		20.97
14000 - Information Technology Occupations		
14041 - Computer Operator I		21.02
14042 - Computer Operator II		23.52
14043 - Computer Operator III		26.23
14044 - Computer Operator IV		29.14
14045 - Computer Operator V		32.27
14071 - Computer Programmer I	(see 1)	22.61
14072 - Computer Programmer II	(see 1)	
14073 - Computer Programmer III	(see 1)	
14074 - Computer Programmer IV	(see 1)	

Attachment 2

14101 - Computer Systems Analyst I	(see 1)	
14102 - Computer Systems Analyst II	(see 1)	
14103 - Computer Systems Analyst III	(see 1)	
14150 - Peripheral Equipment Operator		21.02
14160 - Personal Computer Support Technician		29.14
14170 - System Support Specialist		32.27
15000 - Instructional Occupations		
15010 - Aircrew Training Devices Instructor (Non-Rated)		38.28
15020 - Aircrew Training Devices Instructor (Rated)		46.32
15030 - Air Crew Training Devices Instructor (Pilot)		55.36
15050 - Computer Based Training Specialist / Instructor		38.28
15060 - Educational Technologist		39.84
15070 - Flight Instructor (Pilot)		55.36
15080 - Graphic Artist		31.00
15085 - Maintenance Test Pilot, Fixed, Jet/Prop		55.54
15086 - Maintenance Test Pilot, Rotary Wing		55.54
15088 - Non-Maintenance Test/Co-Pilot		55.54
15090 - Technical Instructor		25.32
15095 - Technical Instructor/Course Developer		30.97
15110 - Test Proctor		20.44
15120 - Tutor		20.44
16000 - Laundry, Dry-Cleaning, Pressing And Related Occupations		
16010 - Assembler		19.38
16030 - Counter Attendant		19.38
16040 - Dry Cleaner		22.14
16070 - Finisher, Flatwork, Machine		19.38
16090 - Presser, Hand		19.38
16110 - Presser, Machine, Drycleaning		19.38
16130 - Presser, Machine, Shirts		19.38
16160 - Presser, Machine, Wearing Apparel, Laundry		19.38
16190 - Sewing Machine Operator		23.07
16220 - Tailor		24.00
16250 - Washer, Machine		20.30
19000 - Machine Tool Operation And Repair Occupations		
19010 - Machine-Tool Operator (Tool Room)		34.30
19040 - Tool And Die Maker		42.49
21000 - Materials Handling And Packing Occupations		
21020 - Forklift Operator		26.45
21030 - Material Coordinator		28.18
21040 - Material Expediter		28.18
21050 - Material Handling Laborer		21.46
21071 - Order Filler		18.80
21080 - Production Line Worker (Food Processing)		26.45
21110 - Shipping Packer		26.41
21130 - Shipping/Receiving Clerk		26.41
21140 - Store Worker I		18.34
21150 - Stock Clerk		22.64
21210 - Tools And Parts Attendant		26.45
21410 - Warehouse Specialist		26.45
23000 - Mechanics And Maintenance And Repair Occupations		
23010 - Aerospace Structural Welder		40.56
23019 - Aircraft Logs and Records Technician		31.86
23021 - Aircraft Mechanic I		38.37
23022 - Aircraft Mechanic II		40.56
23023 - Aircraft Mechanic III		42.79
23040 - Aircraft Mechanic Helper		27.49
23050 - Aircraft, Painter		36.19
23060 - Aircraft Servicer		31.86
23070 - Aircraft Survival Flight Equipment Technician		36.19
23080 - Aircraft Worker		34.03
23091 - Aircrew Life Support Equipment (ALSE) Mechanic I		34.03
23092 - Aircrew Life Support Equipment (ALSE) Mechanic II		38.37
23110 - Appliance Mechanic		34.30
23120 - Bicycle Repairer		28.16
23125 - Cable Splicer		63.80
23130 - Carpenter, Maintenance		36.03
23140 - Carpet Layer		32.27
23160 - Electrician, Maintenance		36.16
23181 - Electronics Technician Maintenance I		32.27
23182 - Electronics Technician Maintenance II		34.30
23183 - Electronics Technician Maintenance III		36.36
23260 - Fabric Worker		30.21
23290 - Fire Alarm System Mechanic		36.36
23310 - Fire Extinguisher Repairer		28.16
23311 - Fuel Distribution System Mechanic		44.74
23312 - Fuel Distribution System Operator		34.64
23370 - General Maintenance Worker		24.30
23380 - Ground Support Equipment Mechanic		38.37
23381 - Ground Support Equipment Servicer		31.86
23382 - Ground Support Equipment Worker		34.03
23391 - Gunsmith I		28.16
23392 - Gunsmith II		32.27
23393 - Gunsmith III		36.36
23410 - Heating, Ventilation And Air-Conditioning Mechanic		28.90
23411 - Heating, Ventilation And Air Contidioning Mechanic (Research Facility)		30.55

23430 - Heavy Equipment Mechanic		34.62
23440 - Heavy Equipment Operator		34.65
23460 - Instrument Mechanic		36.36
23465 - Laboratory/Shelter Mechanic		34.30
23470 - Laborer		21.46
23510 - Locksmith		34.30
23530 - Machinery Maintenance Mechanic		33.36
23550 - Machinist, Maintenance		27.78
23580 - Maintenance Trades Helper		22.52
23591 - Metrology Technician I		36.36
23592 - Metrology Technician II		38.44
23593 - Metrology Technician III		40.54
23640 - Millwright		31.17
23710 - Office Appliance Repairer		34.30
23760 - Painter, Maintenance		29.60
23790 - Pipefitter, Maintenance		36.07
23810 - Plumber, Maintenance		34.02
23820 - Pneudraulic Systems Mechanic		36.36
23850 - Rigger		36.36
23870 - Scale Mechanic		32.27
23890 - Sheet-Metal Worker, Maintenance		36.36
23910 - Small Engine Mechanic		26.37
23931 - Telecommunications Mechanic I		35.62
23932 - Telecommunications Mechanic II		37.66
23950 - Telephone Lineman		42.21
23960 - Welder, Combination, Maintenance		25.39
23965 - Well Driller		36.36
23970 - Woodcraft Worker		36.36
23980 - Woodworker		28.16
24000 - Personal Needs Occupations		
24550 - Case Manager		27.05
24570 - Child Care Attendant		19.18
24580 - Child Care Center Clerk		23.93
24610 - Chore Aide		16.50
24620 - Family Readiness And Support Services Coordinator		27.05
24630 - Homemaker		27.05
25000 - Plant And System Operations Occupations		
25010 - Boiler Tender		35.51
25040 - Sewage Plant Operator		31.91
25070 - Stationary Engineer		35.51
25190 - Ventilation Equipment Tender		25.46
25210 - Water Treatment Plant Operator		31.91
27000 - Protective Service Occupations		
27004 - Alarm Monitor		29.93
27007 - Baggage Inspector		20.45
27008 - Corrections Officer		48.60
27010 - Court Security Officer		39.37
27030 - Detection Dog Handler		22.88
27040 - Detention Officer		48.60
27070 - Firefighter		30.13
27101 - Guard I		20.45
27102 - Guard II		22.88
27131 - Police Officer I		42.17
27132 - Police Officer II		46.84
28000 - Recreation Occupations		
28041 - Carnival Equipment Operator		22.13
28042 - Carnival Equipment Repairer		23.91
28043 - Carnival Worker		17.37
28210 - Gate Attendant/Gate Tender		22.91
28310 - Lifeguard		18.40
28350 - Park Attendant (Aide)		25.62
28510 - Recreation Aide/Health Facility Attendant		18.70
28515 - Recreation Specialist		31.74
28630 - Sports Official		20.41
28690 - Swimming Pool Operator		27.39
29000 - Stevedoring/Longshoremen Occupational Services		
29010 - Blocker And Bracer		32.27
29020 - Hatch Tender		32.27
29030 - Line Handler		32.27
29041 - Stevedore I		30.21
29042 - Stevedore II		34.30
30000 - Technical Occupations		
30010 - Air Traffic Control Specialist, Center (HFO)	(see 2)	51.59
30011 - Air Traffic Control Specialist, Station (HFO)	(see 2)	35.57
30012 - Air Traffic Control Specialist, Terminal (HFO)	(see 2)	39.17
30021 - Archeological Technician I		22.21
30022 - Archeological Technician II		24.84
30023 - Archeological Technician III		30.77
30030 - Cartographic Technician		30.77
30040 - Civil Engineering Technician		30.93
30051 - Cryogenic Technician I		33.58
30052 - Cryogenic Technician II		37.09
30061 - Drafter/CAD Operator I		22.21
30062 - Drafter/CAD Operator II		24.84
30063 - Drafter/CAD Operator III		27.70
30064 - Drafter/CAD Operator IV		34.08
30081 - Engineering Technician I		20.20
30082 - Engineering Technician II		22.67

30083 - Engineering Technician III		25.36
30084 - Engineering Technician IV		31.41
30085 - Engineering Technician V		38.41
30086 - Engineering Technician VI		46.48
30090 - Environmental Technician		31.04
30095 - Evidence Control Specialist		30.33
30210 - Laboratory Technician		28.26
30221 - Latent Fingerprint Technician I		33.58
30222 - Latent Fingerprint Technician II		37.09
30240 - Mathematical Technician		31.04
30361 - Paralegal/Legal Assistant I		24.33
30362 - Paralegal/Legal Assistant II		30.14
30363 - Paralegal/Legal Assistant III		36.87
30364 - Paralegal/Legal Assistant IV		44.62
30375 - Petroleum Supply Specialist		37.09
30390 - Photo-Optics Technician		30.77
30395 - Radiation Control Technician		37.09
30461 - Technical Writer I		30.77
30462 - Technical Writer II		37.63
30463 - Technical Writer III		45.20
30491 - Unexploded Ordnance (UXO) Technician I		32.78
30492 - Unexploded Ordnance (UXO) Technician II		39.66
30493 - Unexploded Ordnance (UXO) Technician III		47.54
30494 - Unexploded (UXO) Safety Escort		32.78
30495 - Unexploded (UXO) Sweep Personnel		32.78
30501 - Weather Forecaster I		34.08
30502 - Weather Forecaster II		41.46
30620 - Weather Observer, Combined Upper Air Or Surface Programs	(see 2)	27.70
30621 - Weather Observer, Senior	(see 2)	30.77
31000 - Transportation/Mobile Equipment Operation Occupations		
31010 - Airplane Pilot		39.66
31020 - Bus Aide		19.16
31030 - Bus Driver		26.28
31043 - Driver Courier		20.28
31260 - Parking and Lot Attendant		16.77
31290 - Shuttle Bus Driver		20.67
31310 - Taxi Driver		15.04
31361 - Truckdriver, Light		21.91
31362 - Truckdriver, Medium		23.50
31363 - Truckdriver, Heavy		28.66
31364 - Truckdriver, Tractor-Trailer		28.66
99000 - Miscellaneous Occupations		
99020 - Cabin Safety Specialist		19.34
99030 - Cashier		17.53
99050 - Desk Clerk		17.91
99095 - Embalmer		32.78
99130 - Flight Follower		32.78
99251 - Laboratory Animal Caretaker I		21.08
99252 - Laboratory Animal Caretaker II		22.78
99260 - Marketing Analyst		33.68
99310 - Mortician		32.78
99410 - Pest Controller		23.21
99510 - Photofinishing Worker		17.23
99710 - Recycling Laborer		24.30
99711 - Recycling Specialist		28.55
99730 - Refuse Collector		24.07
99810 - Sales Clerk		18.70
99820 - School Crossing Guard		24.48
99830 - Survey Party Chief		35.05
99831 - Surveying Aide		23.64
99832 - Surveying Technician		25.70
99840 - Vending Machine Attendant		23.44
99841 - Vending Machine Repairer		29.01
99842 - Vending Machine Repairer Helper		23.44

Note: Executive Order (EO) 13706, Establishing Paid Sick Leave for Federal Contractors, applies to all contracts subject to the Service Contract Act for which the contract is awarded (and any solicitation was issued) on or after January 1, 2017. If this contract is covered by the EO, the contractor must provide employees with 1 hour of paid sick leave for every 30 hours they work, up to 56 hours of paid sick leave each year. Employees must be permitted to use paid sick leave for their own illness, injury or other health-related needs, including preventive care; to assist a family member (or person who is like family to the employee) who is ill, injured, or has other health-related needs, including preventive care; or for reasons resulting from, or to assist a family member (or person who is like family to the employee) who is the victim of, domestic violence, sexual assault, or stalking. Additional information on contractor requirements and worker protections under the EO is available at www.dol.gov/whd/govcontracts.

Note: Executive Order 13658 generally applies to contracts subject to the Service Contract Act that were awarded on or between January 1, 2015 and January 29, 2022, and that have not been renewed or extended on or after January 30, 2022. If a contract is subject to Executive Order 13658, the contractor must pay all covered workers at least $13.65 per hour (or the applicable wage rate listed on this wage determination, if it is higher) for all hours spent performing on the cor
Additional information on contractor requirements and worker protections under Executive Order 13658 is available at www.dol.gov/whd/govcontracts.

ALL OCCUPATIONS LISTED ABOVE RECEIVE THE FOLLOWING BENEFITS:

HEALTH & WELFARE: $5.92 per hour, up to 40 hours per week, or $236.80 per week or $1,026.13 per month

HEALTH & WELFARE EO 13706: $5.42 per hour, up to 40 hours per week, or $216.80 per week, or $939.46 per month*

*This rate is to be used only when compensating employees for performance on an SCA-covered contract also covered by EO 13706, Establishing Paid Sick Leave for Federal Contractors. A contractor may not receive credit toward its SCA obligations for any paid sick leave provided pursuant to EO 13706.

VACATION: 2 weeks paid vacation after 1 year of service with a contractor or successor, 3 weeks after 5 years, and 4 weeks after 15 years. Length of service includes the whole span of continuous service with the present contractor or successor, wherever employed, and with the predecessor contractors in the performance of similar work at the same Federal facility. (Reg. 29 CFR 4.173)

HOLIDAYS: A minimum of eleven paid holidays per year: New Year's Day, Martin Luther King Jr.'s Birthday, Washington's Birthday, Memorial Day, Juneteenth National Independence Day, Independence Day, Labor Day, Columbus Day, Veterans' Day, Thanksgiving Day, and Christmas Day. (A contractor may substitute for any of the named holidays another day off with pay in accordance with a plan communicated to the employees involved.) (See 29 CFR 4.174)

THE OCCUPATIONS WHICH HAVE NUMBERED FOOTNOTES IN PARENTHESES RECEIVE THE FOLLOWING:

1) COMPUTER EMPLOYEES: This wage determination does not apply to any individual employed in a bona fide executive, administrative, or professional capacity, as defined in 29 C.F.R. Part 541. (See 41 C.F.R. 6701(3)). Because most Computer Systems Analysts and Computer Programmers who are paid at least $27.63 per hour (or at least $684 per week if paid on a salary or fee basis) likely qualify as exempt computer professionals under 29 U.S.C. 213(a)(1) and 29 U.S.C. 213(a)(17), this wage determination may not include wage rates for all occupations within those job families. In such instances, a conformance will be necessary if there are nonexempt employees in these job families working on the contract.

Job titles vary widely and change quickly in the computer industry, and are not determinative of whether an employee is an exempt computer professional. To be exempt, computer employees who satisfy the compensation requirements must also have a primary duty that consists of:

(1) The application of systems analysis techniques and procedures, including consulting with users, to determine hardware, software or system functional specifications;

(2) The design, development, documentation, analysis, creation, testing or modification of computer systems or programs, including prototypes, based on and related to user or system design specifications;

(3) The design, documentation, testing, creation or modification of computer programs related to machine operating systems; or

(4) A combination of the aforementioned duties, the performance of which requires the same level of skills. (29 C.F.R. 541.400).

Any computer employee who meets the applicable compensation requirements and the above duties test qualifies as an exempt computer professional under both section 13(a)(1) and section 13(a)(17) of the Fair Labor Standards Act. (Field Assistance Bulletin No. 2006-3 (Dec. 14, 2006)). Accordingly, this wage determination will not apply to any exempt computer employee regardless of which of these two exemptions is utilized.

2) AIR TRAFFIC CONTROLLERS AND WEATHER OBSERVERS - NIGHT PAY & SUNDAY PAY: If you work at night as part of a regular tour of duty, you will earn a night differential and receive an additional 10% of basic pay for any hours worked between 6pm and 6am. If you are a full-time employed (40 hours a week) and Sunday is part of your regularly scheduled workweek, you are paid at your rate of basic pay plus a Sunday premium of 25% of your basic rate for each hour of Sunday work which is not overtime (i.e. occasional work on Sunday outside the normal tour of duty is considered overtime work).

** HAZARDOUS PAY DIFFERENTIAL **

An 8 percent differential is applicable to employees employed in a position that represents a high degree of hazard when working with or in close proximity to ordnance, explosives, and incendiary materials. This includes work such as screening, blending, dying, mixing, and pressing of sensitive ordnance, explosives, and pyrotechnic compositions such as lead azide, black powder and photoflash powder. All dry-house activities involving propellants or explosives. Demilitarization, modification, renovation, demolition, and maintenance operations on sensitive ordnance, explosives and incendiary materials. All operations involving re-grading and cleaning of artillery ranges.

A 4 percent differential is applicable to employees employed in a position that represents a low degree of hazard when working with, or in close proximity to ordnance, (or employees possibly adjacent to) explosives and incendiary materials which involves potential injury such as laceration of hands, face, or arms of the employee engaged in the operation, irritation of the skin, minor burns and the like; minimal damage to immediate or adjacent work area or equipment being used. All operations involving, unloading, storage, and hauling of ordnance, explosive, and incendiary ordnance material other than small arms ammunition. These differentials are only applicable to work that has been specifically designated by the agency for ordnance, explosives, and incendiary material differential pay.

** UNIFORM ALLOWANCE **

If employees are required to wear uniforms in the performance of this contract (either by the terms of the Government contract, by the employer, by the state or local law, etc.), the cost of furnishing such uniforms and maintaining (by laundering or dry cleaning) such uniforms is an expense that may not be borne by an

employee where such cost reduces the hourly rate below that required by the wage determination. The Department of Labor will accept payment in accordance with the following standards as compliance:

The contractor or subcontractor is required to furnish all employees with an adequate number of uniforms without cost or to reimburse employees for the actual cost of the uniforms. In addition, where uniform cleaning and maintenance is made the responsibility of the employee, all contractors and subcontractors subject to this wage determination shall (in the absence of a bona fide collective bargaining agreement providing for a different amount, or the furnishing of contrary affirmative proof as to the actual cost), reimburse all employees for such cleaning and maintenance at a rate of $3.35 per week (or $.67 cents per day). However, in those instances where the uniforms furnished are made of """"wash and wear"""" materials, may be routinely washed and dried with other personal garments, and do not require any special treatment such as dry cleaning, daily washing, or commercial laundering in order to meet the cleanliness or appearance standards set by the terms of the Government contract, by the contractor, by law, or by the nature of the work, there is no requirement that employees be reimbursed for uniform maintenance costs.

** SERVICE CONTRACT ACT DIRECTORY OF OCCUPATIONS **

The duties of employees under job titles listed are those described in the """"Service Contract Act Directory of Occupations"""", Fifth Edition (Revision 1), dated September 2015, unless otherwise indicated.

** REQUEST FOR AUTHORIZATION OF ADDITIONAL CLASSIFICATION AND WAGE RATE, Standard Form 1444 (SF-1444) **

Conformance Process:

The contracting officer shall require that any class of service employee which is not listed herein and which is to be employed under the contract (i.e., the work to be performed is not performed by any classification listed in the wage determination), be classified by the contractor so as to provide a reasonable relationship (i.e., appropriate level of skill comparison) between such unlisted classifications and the classifications listed in the wage determination (See 29 CFR 4.6(b)(2)(i)). Such conforming procedures shall be initiated by the contractor prior to the performance of contract work by such unlisted class(es) of employees (See 29 CFR 4.6(b)(2)(ii)). The Wage and Hour Division shall make a final determination of conformed classification, wage rate, and/or fringe benefits which shall be paid to all employees performing in the classification from the first day of work on which contract work is performed by them in the classification. Failure to pay such unlisted employees the compensation agreed upon by the interested parties and/or fully determined by the Wage and Hour Division retroactive to the date such class of employees commenced contract work shall be a violation of the Act and this contract. (See 29 CFR 4.6(b)(2)(v)). When multiple wage determinations are included in a contract, a separate SF-1444 should be prepared for each wage determination to which a class(es) is to be conformed.

The process for preparing a conformance request is as follows:

1) When preparing the bid, the contractor identifies the need for a conformed occupation(s) and computes a proposed rate(s).

2) After contract award, the contractor prepares a written report listing in order the proposed classification title(s), a Federal grade equivalency (FGE) for each proposed classification(s), job description(s), and rationale for proposed wage rate(s), including information regarding the agreement or disagreement of the authorized representative of the employees involved, or where there is no authorized representative, the employees themselves. This report should be submitted to the contracting officer no later than 30 days after such unlisted class(es) of employees performs any contract work.

3) The contracting officer reviews the proposed action and promptly submits a report of the action, together with the agency's recommendations and pertinent information including the position of the contractor and the employees, to the U.S. Department of Labor, Wage and Hour Division, for review (See 29 CFR 4.6(b)(2)(ii)).

4) Within 30 days of receipt, the Wage and Hour Division approves, modifies, or disapproves the action via transmittal to the agency contracting officer, or notifies the contracting officer that additional time will be required to process the request.

5) The contracting officer transmits the Wage and Hour Division's decision to the contractor.

6) Each affected employee shall be furnished by the contractor with a written copy of such determination or it shall be posted as a part of the wage determination (See 29 CFR 4.6(b)(2)(iii)).

Information required by the Regulations must be submitted on SF-1444 or bond paper.

When preparing a conformance request, the """"Service Contract Act Directory of Occupations"""" should be used to compare job definitions to ensure that duties requested are not performed by a classification already listed in the wage determination. Remember, it is not the job title, but the required tasks that determine whether a class is included in an established wage determination. Conformances may not be used to artificially split, combine, or subdivide classifications listed in the wage determination (See 29 CFR 4.152(c)(1))."""